

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 07/23/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 8:32 AM CASE NUMBER: C25-02163
CASE NAME: NICOLE THOMAS VS. PITTSBURG UNIFIED SCHOOL DISTRICT
HEARING ON ORDER TO SHOW CAUSE IN RE: WHY THE COURT SHOULD NOT DISMISS THIS CASE
AND OR SANCTION PLAINTIFF'S FOR FAILURE TO APPEAR AND PROSECUTE CASE./ CASE
MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

Given the Court's tentative ruling, the Case Management Conference is continued to August 19, 2026, at 8:30 am in Department 10.

2. 8:31 AM CASE NUMBER: C25-03121
CASE NAME: JACOB CANALE VS. KELLY BOZARTH
***FURTHER CASE MANAGEMENT CONFERENCE TRAILING MOTIONS**

FILED BY:

TENTATIVE RULING:

The Case Management Conference is continued to January 19, 2027, at 8:30, in Department 10.

**3. 8:31 AM CASE NUMBER: MS25-0374
CASE NAME: BERT MORGAN VS. THERON "TED" TURNER
PRETRIAL CONFERENCE STATUS OF DISMISSAL**

FILED BY:

TENTATIVE RULING:

The Court has not received a status report regarding the move-out. Absent such update or a dismissal, Parties to appear.

**4. 9:00 AM CASE NUMBER: MSC16-01118
CASE NAME: YUE VS. TRIGMAX SOLUTIONS
*FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

Parties to appear.

**5. 9:00 AM CASE NUMBER: MSC16-01118
CASE NAME: YUE VS. TRIGMAX SOLUTIONS
HEARING ON ORDER TO SHOW CAUSE IN RE: DEFENSE COUNSEL FAILURE TO APPEAR ON 1/30/26**

FILED BY:

TENTATIVE RULING:

The Court has not received a supplemental filing by Counsel. Counsel ordered to appear.

Law & Motion

**6. 9:00 AM CASE NUMBER: C24-00451
CASE NAME: JAXSON JULIAN VS. MARIA CASILLAS
HEARING ON DEMURRER TO: 3RD AMENDED COMPLAINT**

FILED BY: CASILLAS, MARIA

TENTATIVE RULING:

Before the Court are defendants' demurrer and motion to strike, filed in response to the Third Amended Complaint ("TAC"). The **demurrer by defendant Maria Casillas is sustained as to the fourth and seventh causes of action, but overruled as to the eighth cause of action. The demurrer by defendant West Contra Costa Unified School District is sustained. The motion to strike is granted**

with respect to the punitive damage items, but otherwise denied.

Plaintiff has leave to file an amended complaint on or before August 3, 2026. Should plaintiff elect not to amend, the time to answer shall run from that date.

I. Factual Background as Alleged by Plaintiff

Plaintiff was a student at Shannon Elementary School until October 2023, when he obtained a transfer to another school through the Office of Administrative Hearing. (Third Amended Complaint, hereinafter “TAC,” ¶ 12.) While at Shannon Elementary, plaintiff was bullied based on his disabilities and the District failed to address the issue and to provide reasonable accommodations. (*Ibid.*) From February through April 2022, defendant Maria Casillas, a teacher at Shannon Elementary, “massaged his shoulders and back on multiple occasions.” (TAC, ¶ 13.) Plaintiff’s mother and guardian ad litem complained to the school and “nothing was done.” (*Ibid.*) District employees are mandated reporters and, as of August 2023, did not report the alleged touching. (*Ibid.*)

On February 16, 2023, another student “bullied” plaintiff and caused his body to be “sore,” necessitating a visit to Kaiser. (TAC, ¶ 14.) District was informed of the incident. (*Ibid.*) On March 15, 2023, another student “assaulted” plaintiff in class, but instead of addressing the bully, District employees “caused Plaintiff to lose services he’s entitled to under his IEP” and took away his recess. (*Ibid.*) Plaintiff’s mother was not notified. (*Ibid.*) On April 10, 2023, other children were bullying plaintiff by playing “trip Jax” and the District did nothing to protect plaintiff. (*Ibid.*) Plaintiff went to Kaiser the following day and “could not walk” from his injuries. (*Ibid.*) On April 20, 2023, plaintiff was “threatened with death” and beaten by other students, causing him to lose a tooth and have difficulty walking. (*Ibid.*) His mother followed up with the District regarding the bullying, but received no response. On May 3, 2023, he was bullied again, was told he would not get ice and to go home. (*Ibid.*) Plaintiff was diagnosed with “severe muscle strains” and the school was informed. (*Ibid.*) In May of 2023, plaintiff was “stabbed with a pencil that had to be surgically removed and was headbutted in the mouth.” (*Ibid.*)

Plaintiff has been diagnosed with certain disabilities that entitle him to coverage under the Americans with Disabilities Act. (TAC, ¶ 15.) From November 2022 to May 10, 2023, he received an IEP wherein he was to receive “intensive individual services via a paraprofessional aide.” (TAC, ¶ 16.) From November 15, 2022, to May 10, 2023, there were 20 weeks wherein the District failed to meet plaintiff’s needs as to the required minutes. During the 2022-2023 school year, plaintiff had difficulty meeting “grade-level standards,” and District did not record progress on his “decoding IEP goals.” (TAC, ¶ 17.)

On May 18, 2022, a safety plan was created for plaintiff and on May 23, 2023, an IEP plan for plaintiff was implemented to address deficits “in the area of S/L.” (TAC, ¶ 18.) No Behavior Intervention Plan (“BIP”) was included at the IEP team meeting, even though plaintiff’s mother “requested safety be discussed on August 17 and 25, 2022.” (*Ibid.*) On November 10, 2022, the District developed another IEP to address deficits in the “areas of S/L and discrepancies between cognitive ability and academic achievement.” (*Ibid.*) The safety plan was updated at this IEP meeting, but “neither a BIP nor behavior goals were included.” (*Ibid.*)

On February 27, 2023, an IEP meeting was held to amend the IEP, and the team agreed to implement a communication log and conduct a mental health assessment. (TAC, ¶18.) Decoding and word recognition goals were added to the IEP, but the District did not provide progress on the goals. (*Ibid.*) Three days prior, on February 24th, plaintiff’s mother had told the District she wanted to record

the upcoming IEP meeting, but the District did not allow this, taking the position that the request was untimely. (TAC, ¶ 19.) On February 27, 2023, plaintiff's "in-class helpers abandoned him and chose not to help a 'problem child'" and District did not respond to complaints about the helpers' failures. (TAC, ¶ 20.)

Between February 3, 2023 and October 2023, when an updated IEP was agreed upon, District "failed to timely conduct" IEP meetings, ignored plaintiff's mother's emails, and meetings were delayed or cancelled. (TAC, ¶ 21.)

II. Procedural History and Meet and Confer

Plaintiff, through his mother / Guardian Ad Litem, first brought suit against defendants, West Contra Costa Unified School District and Maria Casillas, in February of 2024. Plaintiff took the default of the District, but on a motion by the District, it was set aside by Judge Treat in December 2024. Before any answer was filed, plaintiff amended the complaint and defendants met and conferred with plaintiff. Plaintiff filed a Second Amended Complaint, to which the defendants demurred. Judge Weil partially sustained the demurrer in November 2025 after which plaintiff filed the current Third Amended Complaint.

The TAC alleges nine causes of action, including: (1) violation of the American with Disabilities Act, (2) violation of Section 504 of the Rehabilitation Act of 1973, (3) violation of Education Code § 220, (4) violation of 42 U.S.C. 1983, (5) negligence, (6) negligent supervision, hiring, and/or retention, (7) Intentional Infliction of Emotional Distress ("IIED"), (8) battery, and (9) failure to perform mandatory duty to protect student. The first, second, sixth, and ninth causes of action are alleged against the District. The fourth and eighth causes of action are alleged against Casillas. The third, fifth, and seventh causes of action are alleged against both the District and Casillas.

After meeting and conferring with plaintiff (see Declaration of Jessica D. Adair) in compliance with Code of Civil Procedure sections 430.41 (a) and 435.5 (a), District and Casillas filed the present demurrer and a motion to strike punitive damages. Plaintiff timely opposed both motions (despite defense arguments in the reply papers suggesting otherwise).

III. Demurrer

A. Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318, citations omitted.) The complaint is read as a whole and the parts in their context, considering matters which may be judicially noticed. (*Ibid.*; Code Civ. Proc. § 430.30(a).)

B. Discussion

1. Fourth C/A for Violation of Constitutional Rights (Against Casillas)

Defendant Casillas demurs to the fourth cause of action, arguing that the factual allegations are insufficient.

A cause of action pursuant to 42 U.S.C. § 1983 requires plaintiff, in order to state a cause of action under that statute, to allege that (1) some person has deprived him of a federal right and (2) that the person who has deprived him of that right acted under color of state or territorial law. (*Catsouras v. Department of California Highway Patrol* (2010) 181 Cal.App.4th 856, 890, citation

omitted; see also 2 CACI 3000 (2025).)

The allegations against Casillas continue to fail in two respects identified in the Court's previous ruling: plaintiff does not identify the *federal* right at stake (though he mentions several rights under California law), nor does he allege Casillas was acting under color of state law. Accordingly, the demurrer to this cause of action is sustained.

2. Seventh C/A for Intentional Infliction of Emotional Distress

A cause of action for intentional infliction of emotional distress exists when there is (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050–1051.) A defendant's conduct is outrageous when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (*Ibid.*) And the defendant's conduct must be intended to inflict injury or engaged in with the realization that injury will result. (*Ibid.*)

As asserted in their last demurrer, defendants contend plaintiff's allegations do not amount to a cause of action for IIED because the actions alleged are too conclusory to constitute "outrageous" or intentional conduct.

In response, plaintiff highlights the allegations that have been added to the TAC. Specifically, since the Court's previous ruling, plaintiff has added that the District "knew that Plaintiff was being touched by a teacher inappropriately and was being bullied, hit, kicked, beaten. Instead of intervening or attempting to hold anyone to account, they went out of their way to make the process more difficult. Yet, they were hostile toward him and his family when they sought help. They stone walled the IEP process to address the bullying and disability concerns, prolonging and exacerbating the impact and creating a hostile environment between Plaintiff and his educators. Instead of having a safe place at school, at least with the school officials, Plaintiff was up against his peers and those who are supposed to protect him." (TAC, ¶150.)

These details continue to be overly conclusory and suggestive of failures to act rather than intentional acts.

Plaintiff refers to Casillas only in the context of "Defendants" generally and the massaging here does not rise to the level of conduct "so extreme as to exceed all bounds of that usually tolerated in a civilized community." As mentioned below with respect to battery, the allegations do not suggest Casillas had an intent to injure plaintiff and, while they suffice for battery, the allegations are inadequate with respect to IIED.

The demurrer as to the seventh cause of action is sustained.

3. Eighth C/A for Battery (Against Casillas)

A cause of action for battery requires plaintiff to show: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching. (*So v. Shin* (2013) 212 Cal.App.4th 652, 669.)

"It has long been established, both in tort and criminal law, that 'the least touching' may constitute battery. In other words, force against the person is enough; it need not be violent or

severe, it need not cause bodily harm or even pain, and it need not leave any mark.” (*People v. Mansfield* (1988) 200 Cal.App.3d 82, 88, citations omitted.) A person need not have an intent to injure to commit a battery, only the intent to commit the act. (*Ibid.*) Thus, a simple battery does not necessarily show readiness to do evil or necessarily involve moral turpitude. (*Ibid.*)

Here, plaintiff has alleged that the defendant repeatedly touched and massaged his back and shoulders, and that he was a minor incapable of consenting to such touching. Plaintiff alleges his mother did not consent on his behalf, and that a reasonable person in his position would have been offended by the touching. (TAC, ¶54.) This is sufficient to meet the pleading requirements.

Defendants argue this cause of action is unwarranted because the Court only granted leave to amend the existing cause of action and not to plead a new one. However, the cause of action is not entirely new. The previous version of the complaint labeled the ninth cause of action “Sexual Assault and Battery,” suggesting plaintiff might have been attempting to plead simple battery. Accordingly, the amendment is not outside the scope of what was permitted.

The demurrer is overruled as to battery.

IV. Motion to Strike

A. Motion

The motion seeks to strike numerous allegations including allegations requesting punitive damages against “Non-Public Entity Defendants” (Items 1, 2, and 8) , the entire “Eighth Cause of Action- Battery Against MARIA CASILLAS,” (Item 3); and various paragraphs reciting legal principles (Items 4-7).

B. Standard

The Court *may*, in its discretion and upon a motion to strike by defendant: (a) strike out any irrelevant, false, or improper matter inserted in any pleading, or (b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., §§ 435-436.) The matter must appear on the face of the complaint, or be subject to judicial notice. (Code Civ. Proc., § 437.)

C. Discussion

1. Punitive Damages Against Non-Public Entity Defendants (Items 1, 2, and 8)

Defendants seek to eliminate the provisions of the TAC requesting punitive damages.

California Civil Code, § 3294 provides in relevant part:

In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant...

(1) “Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civil Code, § 3294.)

A plaintiff must plead more than conclusory allegations to seek punitive damages. (*Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1042.) "In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Plaintiff, as discussed above with respect to the demurrer, does not allege any particularly blameworthy act on the part of Maria Casillas. While a defendant must have intended to cause the touching involved in a battery, nothing in the complaint suggests that there was any intent to harm in Casillas' touching. Accordingly, an award for the "sake of example and by way of punishing the defendant" is not justified.

The motion to strike is granted as to items 1, 2, and 8. However, plaintiff states he can "go into more detail" (Opposition 5:14-16) so leave to amend is granted.

2.Eighth Cause of Action

As discussed above, with respect to the demurrer, the Court does not agree with defendants that the scope of amendment precluded plaintiff's adjusting of the eighth cause of action. The motion is denied as to this item (Item No. 3).

3.Discussion of Legal Authorities

As to the various citations to legal authority and plaintiff's narrative concerning the import of these authorities, the motion is denied. While there may be little need for such text, the Court does not necessarily view the text as improper, false, or irrelevant. As pointed out in the plaintiff's opposition, this is complaint against a public entity and therefore may require the pleading and proving of certain mandatory duties pursuant to statute. Accordingly, the motion is denied as to the quoted material (Items 4-7).

7. 9:00 AM CASE NUMBER: C24-00451
CASE NAME: JAXSON JULIAN VS. MARIA CASILLAS
***HEARING ON MOTION IN RE: STRIKE 3RD AMENDED COMPLAINT**
FILED BY: CASILLAS, MARIA
TENTATIVE RULING:

Please see Line 6.

8. 9:00 AM CASE NUMBER: C24-01376
CASE NAME: XUE XIE VS. SHENG LIN
***HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION OF SHENG PING LIN**
FILED BY: XIE, XUE FEN
TENTATIVE RULING:

On January 28, 2026, Plaintiff Xue Fen Xie filed a Motion to Compel the Deposition of Defendant of Sheng Ping Lin. On July 9, 2026, Defendant Lin filed opposition noting that the deposition occurred on March 25, 2026. Plaintiff has not withdrawn the motion, but has also not filed any further request for sanctions. The Court finds the Motion is moot and declines to award sanctions.

9. 9:00 AM CASE NUMBER: C25-02163
CASE NAME: NICOLE THOMAS VS. PITTSBURG UNIFIED SCHOOL DISTRICT
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: PITTSBURG UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

Plaintiff Nicole Thomas filed her complaint on July 31, 2025 alleging wrongful termination against Defendant Pittsburg Unified School District (the District). On February 3, 2026, the District filed a Motion for Judgment on the Pleadings.¹ As of this date, Thomas has filed no opposition, although *before* this Motion was filed, on December 24, 2025, she submitted a “Reasons Not to Dismiss.” She also failed to appear at the case management conference on June 15, 2026, and an order to show cause issued.

Meet and Confer

The meet and confer requirement has been satisfied. (Jessica Adair Decl., ¶¶ 3-7; Code of Civ. Proc., § 439, subd. (a)(3)(A).) Defendant attempted to meet and confer and Plaintiff refused.

Legal Standard for Motion for Judgment on the Pleadings

Code of Civil Procedure section 438 permits a defendant to move for judgment on the pleadings on the ground that the complaint does not state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc., §§ 438, subd. (b)(1), 438, subd. (c)(1)(B)(ii), and 438, subd. (c)(2)(A); *Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 [“Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense. [Citation omitted.]”]; *See also Connerly v. Schwarzenegger* (2007) 146 Cal.App.4th 739, 746 [“ ‘A motion for judgment on the pleadings is the equivalent of a demurrer made after the pleadings are in.’ [Citation omitted.]”].) A motion for judgment on the pleadings may also be made to the complaint in its entirety. (Code Civ. Proc., § 438, subd. (c)(2)(A).)

The legal standards for determination of a motion for judgment on the pleadings are similar to the standards for determination of a demurrer. (*Eckler v. Neutrogena Corp.* (2015) 238 Cal.App.4th 433, 439.) The basis for judgment on the pleadings “shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc. § 438, subd.

¹ At times in briefing, the District refers to its motion as a demurrer. The Court will treat the Motion as it is captioned.

(d).) As in the case of a demurrer, the Court accepts all factual allegations of the complaint and “gives them a liberal construction.” (*Gerawan Farming, Inc. v. Lyon* (2000) 24 Cal.4th 468, 515-516.)

Consistent with the rules for determination of a demurrer, a motion for judgment on the pleadings must fully dispose of the challenged cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.) Further, “If the motion for judgment on the pleadings is granted, leave to amend must be granted unless the defect cannot be cured by amendment.” (*Hudson v. County of Los Angeles* (2014) 232 Cal.App.4th 392, 408.)

Background: The Complaint

The entirety of the allegations are as follows. Thomas alleges breach of contract because the essential terms of the contract are “leave request is a benefit of said contract between the two parties,” and there was “job abandonment when [Thomas] was applying for COVID-19 leave” on or around 8/19/2021.

Discussion

Failure to File Government Claim

To sue a public entity for money damages, a plaintiff must first present a written claim to the entity no later than six months after accrual of the cause of action. (Gov. Code §§ 911.2, 945.4; *City of Stockton v. Superior Court*, (2007) 42 Cal.4th 730, 741-742.) Thomas has not alleged that she did so at any time, notwithstanding within six months of August 19, 2021. She has also alleged no basis for relief from this requirement. For this reason alone, the Motion must be granted.

Breach of Contract

Public employment in the State of California is held by statute, not by contract. (*Miller v. State of California* (1977) 18 Cal.3d 808, 813.) A California public employee, whether civil service or not, cannot state a cause of action for breach of contract or breach of the implied covenant of good faith and fair dealing arising out of the public employment relationship. (*Shoemaker v. Myers* (1990) 52 Cal.3d 1, 23–24; *Hill v. City of Long Beach* (1995) 33 Cal.App.4th 1684, 1690.) The public employee’s remedies are limited to those provided by statute or ordinance. (*Hill v. City of Long Beach* (1985) 33 Cal.App.4th 1684, 1690.) Thomas’s sole cause of action is therefore unavailing.

Moreover, Thomas fails to allege any of the requirements for a breach of contract claim beyond a vague reference to a contract and that she applied for COVID-19 leave. It is not even clear what is meant by “job abandonment.” This is insufficient. (See, e.g., *D’Arrigo Bros. of California v. United Farmworkers of America* (2014) 224 Cal.App.4th 790, 800.)

Wrongful Termination

Although Thomas does not articulate a separate “wrongful termination” claim, she appears to be asserting such a claim. The District argues that she may not assert a “wrongful termination in violation of public policy”—aka *Tameny*—claim against a public entity such as the District. (See, e.g., (*Miklosy v. Regents of University of California* (2008) 44 Cal. 4th 876, 899.) While this is correct, it is not entirely clear the basis for her wrongful termination claim and whether it is based on statute. As it stands, there is no articulated cause of action for wrongful termination.

Leave to Amend

Leave to amend must be granted where there is a possibility of amendment. The District argues that no such possibility exists in this case. Given Thomas’s failure to engage with this case, it is difficult to determine whether (1) she filed but did not plead a government claim; (2) meant anything permissible by her “wrongful termination” language; and most importantly (3) intends to prosecute this case. Given her pro per status, the Court will permit her to amend the complaint but on a very short schedule. Leave to amend is granted but such amendment must be filed within 15 days of this hearing. If no such amendment is filed, the District may seek dismissal.

10. 9:00 AM CASE NUMBER: C25-02184

CASE NAME: NOORULLAH TARIN VS. TRI DELTA TRANSIT

***HEARING ON MOTION IN RE: QUASH PLAINTIFF’S SERVICE OF SUMMONS**

FILED BY: TRI DELTA TRANSIT

TENTATIVE RULING:

Before the Court is Defendant Tri Delta Transit’s motion to quash Plaintiff Noorullah Tarin’s service of summons. The motion relates to Plaintiff’s personal injury complaint filed on August 1, 2025.

Defendant moves to quash pursuant to Code of Civil Procedure section 418.10 on the grounds that the Court lacks jurisdiction over Tri Delta Transit.

For the following reasons, the motion is **granted**.

Legal Standard

California Code Civ. Proc., § 418.10 provides in relevant part that “A defendant . . . may serve and file a notice of motion . . . [t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc. § 418.10(a).) Regardless of whether there are other grounds for personal jurisdiction, due process requires that an adjudication be preceded by proper notice. (*Mullane v. Central Hanover Bank & Trust Co.* (1950) 339 U.S. 306, 313.) “To establish personal jurisdiction, compliance with statutory procedures for service of process is essential...” (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 370.)

When a defendant brings a motion to quash service of summons due to defective service, the burden shifts to the plaintiff to prove facts that give the court jurisdiction. (*Coulston v. Cooper* (1966) 245 Cal.App.2d 866, 868.) Code Civ. Proc., § 418.10(d) further states that “no motion under this section, or under Section 473 or 473.5 when joined with a motion under this section . . . shall be deemed a

general appearance by the defendant.” (Code Civ. Proc. § 418.10(d).)

Statutory Requirements of Service

“[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction.” (*Renoir v. Redstar Corp.* (2004) 123 Cal.App.4th 1145, 1152 quoting *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.) “‘Process’ is ‘a writ or summons issued in the course of judicial proceedings.’” (*Ibid.* citations omitted.) “Unless otherwise provided by statute, notice of a claim against a defendant in a civil action is given by service of a summons on the person.” (*Ibid.*) A court “in which an action is pending has jurisdiction over a party from the time summons is served on him....” (Code Civ. Proc. § 410.50 (a).) “Thus, in the ordinary civil action, unless there be other statutory authority, the issuance and service of summons is a prerequisite to acquisition of jurisdiction.” (*Pousson v. Superior Court of San Diego County* (1958) 165 Cal.App.2d 750, 752.)

The Civil Code prescribes four basis manners of service: (1) personal service, (2) ‘substitute service’ – wherein the papers are left with someone else coupled with mailing, (3) service by mail coupled with an acknowledgement of receipt, and (4) service by publication. (See Cal. Civ. Code § 415.10 et seq.) Here, the Proof at issue indicates that service was made via personal service.

Analysis

Here, the proof of service indicates personal service on “Deanna Perry.” However, Deanna Perry is not Tri Delta Transit’s designated agent for service of process, nor a person otherwise authorized to accept service under the law. (Lashinsky Decl. at ¶ 6.) She is neither a clerk, secretary, president, presiding officer, or other head of Tri-Delta, and is not authorized by Tri-Delta to receive service of process. (*Ibid.*) Furthermore, the Proof of Service indicates that neither the Complaint nor any other required documents were served along with the Summons. (Lashinsky Decl., ¶ 6; Ex. 2.)

Service on public entities requires “delivering a copy of the summons and of the complaint to the clerk, secretary, president, presiding officer, or other head of its governing body, or to a person authorized by the entity to receive service of process.” (Code Civ. Proc. § 416.50(a).)

Defendant has not been served in any of the three permissible manners of Code of Civil Procedure section 416.50(a). Additionally, the proof of service indicates service of the summons only. Service is complete when “a copy of the summons and of the complaint” is served by personal delivery. (Code Civ. Proc. § 415.10.)

The motion is **granted**. The Court quashes the service purportedly effectuated on August 2, 2025.

The Court does note that Defendant cited a non-existent case: “*Cummings v. Brantley Hale* (2014) 229 Cal.App.4th 538, 544 [“A summons must be accompanied by a copy of the complaint, and failure to serve both is improper service.”].” The Court can find no hint of this case anywhere. Defendant is admonished to check all citations. Further erroneous citations may result in sanctions.

11. 9:00 AM CASE NUMBER: C25-02184
CASE NAME: NOORULLAH TARIN VS. TRI DELTA TRANSIT
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: TRI DELTA TRANSIT
TENTATIVE RULING:

In light of the Court's ruling on Defendant's motion to quash service of the summons and complaint, the Court deems Defendant's demurrer moot. (*McClatchy v. Coblentz, Patch Duffy & Bass, LLP* (2016) 247 Cal.App.4th 368, 375.)

12. 9:00 AM CASE NUMBER: C25-02647
CASE NAME: GINO CARUSO VS. ELVECIO PINHEIRO MACHADO FILHO
HEARING IN RE: MOTION FOR STATUS CONFERENCE
FILED BY:

TENTATIVE RULING:

Plaintiff requests a status conference. The unopposed request is granted. Parties to appear for status conference.

13. 9:00 AM CASE NUMBER: C25-02933
CASE NAME: OFEILA NOROOZI VS. SANDEEP WALIA, MD
***HEARING ON MOTION IN RE: STRIKE FIRST AMENDED COMPLAINT**
FILED BY: WALIA, SANDEEP, MD

TENTATIVE RULING:

Before the Court is Defendant Sandeep Walia, M.D. ("Defendant" or "Walia")'s motion to strike portions of Plaintiff Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi (collectively, "Plaintiffs") First Amended Complaint. Plaintiffs oppose the Motion.

For the following reasons, the Motion is **granted-in-part** and **denied-in-part**, with leave to amend.

Legal Standard

California Civil Code ("CC") § 3294 provides in relevant part:

In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant...

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant

of thereby depriving a person of property or legal rights or otherwise causing injury.

(CC § 3294.)

California Code of Civil Procedure § 436 provides:

The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP § 436.)

Motion

Defendant seeks to strike the following from the First Amended Complaint:

- Page/Lines - 56:28-57:1: "Defendants, and each of them, are liable for exemplary and punitive damages and reasonable attorney's fees..."
- Page/Lines – 59:14-15: "For punitive damages in a sum according to proof and as the Court deems proper (pursuant to Plaintiffs' CCP § 425.13 Motion and Court Order);"
- Page/Lines – 59:21-22: "Statutory penalties, liquidated penalties, and all other penalties and/or damages that may be permitted by law;" and
- Page/Lines – 59:24: "Reasonable attorney's fees according to proof and as allowed by law."

Analysis

Punitive Damages

Defendant argues that 425.13 precludes Plaintiffs' punitive damages claim. Plaintiffs argue in opposition that a revised fraud claim will support their claim for punitive damages.

In *College Hospital*, the California Supreme Court determined that section 425.13 applies when punitive damages are sought for "any misconduct 'directly related to the professional services provided by the healthcare provider.'" (*College Hospital v. Superior Court* (1994) 8 Cal.4th 704, 714, quoting *Central Pathology Service Medical Clinic, Inc. v. Superior Court* (1992) 3 Cal.4th 181, 189.)

However, intentional torts are not subject to this same requirement. (See *Unruh-Haxton v. Regents of University of California* (2008) 162 Cal.App.4th 343, 355-356 [patients' claims for fraud, conversion, and intentional infliction of emotional distress were related to wrongful intentional conduct, not mere negligence; see also *Perry v. Shaw* (2001) 88 Cal.App.4th 658, 669 [nothing in the legislative history of MICRA suggests the Legislature intended to exempt intentional wrongdoers from liability by treating such conduct as though it had been nothing more than mere negligence].)

Under the above case law, Plaintiffs would appear to be able to seek punitive damages for their claims of negligent infliction of emotional distress and fraud.

Even so, there are insufficient factual allegations to support circumstances of fraud, malice or oppression on the part of this Defendant. The mere fact that an intentional tort is alleged is not sufficient. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) Conclusory allegations of fraud, oppression and malice are not enough. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Where the fraud cause of action is not adequately pleaded, it would not support the claim for punitive damages. Such is the case here.

For the foregoing reasons, Defendant's motion is **granted** with respect to the punitive damages allegations.

Attorney's Fees

Defendant moves to strike Plaintiffs' prayer for attorney's fees on the grounds that plaintiffs have not alleged any contractual provision that would entitle them to attorney's fees.

While Defendant is correct that Plaintiffs have not alleged any contractual provision that would entitle them to attorneys' fees, unsupported attorneys' fee allegations need not be stricken pursuant to a motion to strike, since later discovery may reveal a basis for their recovery. (*Camenisch v. Superior Court* (1996) 44 Cal.App.4th 1689, 1699.) In addition, "[t]here is no requirement that a party plead that it is seeking attorney fees, and there is no requirement that the ground for a fee award be specified in the pleadings." (*Yassin v. Solis* (2010) 184 Cal.App.4th 524, 533.) Attorney's fees are recoverable as costs if authorized by statute, contract or law. (CCP, § 1033.5, subd. (a)(10).)

As a consequence, Defendant's motion is **denied** with respect to the attorney's fees allegations.

Statutory and Liquidated Penalties

Similarly, Defendants move to strike Plaintiffs' prayer for "statutory damages and liquidated penalties." However, for similar reasons as above, the Court **denies** the motion as to this portion of Plaintiffs' prayer for relief.

14. 9:00 AM CASE NUMBER: C25-02933
CASE NAME: OFEILA NOROOZI VS. SANDEEP WALIA, MD
HEARING ON DEMURRER TO: TO 1ST AMENDED COMPLAINT
FILED BY: JOHN MUIR HEALTH WALNUT CREEK MEDICAL CENTER
TENTATIVE RULING:

Before the Court is Defendant John Muir Health, Defendant John Muir Health Walnut Creek Medical Center, Defendant John Muir Health Organized Medical Staff, and Defendant Contra Costa Pediatric Venture LLC (collectively, "Defendants" or "JMH")'s Demurrer to Plaintiff Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi (collectively, "Plaintiffs") First Amended Complaint.

Defendant demurs to Plaintiffs' causes of action for (4) Negligent infliction of emotional distress

(Ofelia Noroozi), (5) Negligent infliction of emotional distress (Payman Noroozi), (6) Negligent infliction of emotional distress (Sahar Noroozi), (7) fraud, and (8) tort per se on several grounds.

For the following reasons, the Demurrer is **sustained**, with leave to amend.

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

4, 5, 6. Negligent Infliction of Emotional Distress

Defendants argue that Plaintiffs have not alleged facts sufficient to state their causes of action for negligent infliction of emotional distress.

“[A] plaintiff may recover damages for emotional distress caused by observing the negligently inflicted injury of a third person if, but only if, said plaintiff: (1) is closely related to the injury victim; (2) is present at the scene of the injury producing event at the time it occurs and is then aware that it is causing injury to the victim; and (3) as a result suffers serious emotional distress—a reaction beyond that which would be anticipated in a disinterested witness and which is not an abnormal response to the circumstances.” (*Thing v. La Chusa* (1989) 48 Cal.3d 644, 667–668; accord *Downey v. City of Riverside* (2024) 16 Cal.5th 539, 550.) “Neither our precedent nor considerations of tort policy support requiring plaintiffs asserting bystander emotional distress claims to show contemporaneous perception of the causal link between the defendant’s conduct and the victim’s injuries.” (*Downey, supra*, 16 Cal.5th at p. 560.) Nevertheless, the Supreme Court’s analysis in *Bird v. Saenz* (2002) 28 Cal.4th 910 “remains the controlling precedent for negligent infliction of emotional distress claims arising from the provision of deficient medical care to a close relative.” (*Id.* at p. 560, fn. 11.)

“*Bird* placed particular emphasis on how difficult—often impossible—it generally is for laypersons to recognize in the moment that a course of medical treatment is causing injury. Even when plaintiffs are present at the scene of the injury-causing event and observe conduct that they later realize caused injury to a close relative, their lack of medical knowledge will ordinarily keep them from being ‘then aware that it [was] causing injury to the victim.’ [Citation].” (*Downey, supra*, 16 Cal.5th at p. 554.) “In such cases, the injury-causing events or conduct are not traumatizing because they are perceived as injury-causing only in retrospect, when the observer is affected by the event’s results.” (*Ibid.*) “*Bird* itself made clear that the injury caused by medical negligence is different in this regard from many

other types of injury-producing events. We explained that the invisibility of injury-causing events resulting from deficient medical care makes a typical medical negligence case distinguishable from, for instance, a case arising from ‘an explosion, traffic accident, or electrocution.’ [Citation].” (*Ibid.*)

Here, Plaintiffs allege that Amin Noroozi died following a traumatic diving accident “due to Defendants’ gross negligence in managing life-threatening complications that should have been anticipated and treated according to established medical protocols.” (FAC at ¶ 1.) They allege several “systemic failures in post-surgical care of Amin Noroozi’s spinal cord injury” (*id.* at 16:9) including “treat[ing] Amin with multiple drugs that were contraindicated for his specific condition” (*id.* at 17:10-11) which “exacerbated his cardiovascular instability and contributed to his deterioration.” (*id.* at ¶ 52(A).) They also allege that “Amin experienced severe thermoregulatory dysfunction” as a result of Defendants’ failure to implement “appropriate temperature monitoring and cooling protocols from the outset.” (*id.* at ¶ 52(B).) Plaintiffs allege that Defendants inadequately responded to Amin Noroozi’s severe hypokalemia and failed to adequately manage his sodium levels. (FAC at ¶ 52(D).) Plaintiffs further allege Defendants failed to implement basic infection screening protocols (*id.* at ¶ 52(E)), exacerbated decedent’s acute kidney injury (*id.* at ¶ 52(F)), and that Defendants “failed to properly assess and treat neurogenic shock resulting from Amin’s high cervical injury.” (*id.* at ¶ 52(G).

Plaintiffs also allege that Defendants failed to “effectively address sepsis, a 109-degree temperature, and unbalanced potassium levels[.]” (*id.* at ¶ 128.) They further allege that Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi were each at Amin Noroozi’s bedside when his fever spiked to 109 degrees and he was not provided with any intervention besides Ibuprofen. (*id.* at ¶¶ 131, 138, 144.)

The Supreme Court in *Bird* drew an important distinction between circumstances involving unperceived medical errors in providing treatment and the circumstances in *Ochoa v. Superior Court* (1985) 39 Cal.3d 159, where the “injury-producing event was the failure of custodial authorities to respond significantly to symptoms obviously requiring immediate medical attention.” (*Bird, supra*, 28 Cal.4th at pp. 919-920.) In drawing this distinction, the Court explained that “[s]uch a failure to provide medical assistance, as opposed to a misdiagnosis, unsuccessful treatment, or treatment that turns out to have been inappropriate only in retrospect, is not necessarily hidden from the understanding awareness of a layperson.” (*id.* at p 920.) Although Plaintiffs argue that the alleged conduct in their amended complaint falls within the former category (see Opp. at 6:18-24), the pleaded facts appear to place the action within the latter category. Plaintiffs’ allegations suggest continued misdiagnosis, unsuccessful treatment, and use of inappropriate treatments of the decedent during his hospitalization rather than a complete failure to diagnose his condition or provide any treatment to him. (*Bird, supra*, 28 Cal.4th at pp. 921 [“In any event, a rule permitting bystanders to sue for NIED on account of unperceived medical errors hidden in a course of treatment cannot be reconciled with *Thing*’s requirement that the plaintiff be aware of the connection between the injury-producing event and the injury.”].)

For these reasons, Defendants’ demurrer to the fourth, fifth, and sixth causes of action for negligent

infliction of emotional distress is **sustained**, with leave to amend.

7. Fraud

Defendants demur to Plaintiffs' cause of action for fraud on the grounds that it lacks the requisite specificity.

"The elements of fraud are misrepresentation, knowledge of falsity, intent to induce reliance on the misrepresentation, justifiable reliance on the misrepresentation, and resulting damages." (*Reeder v. Specialized Loan Servicing LLC* (2020) 52 Cal.App.5th 795, 803 [citing *Lazar v. Superior Court* (1996) 12 Cal.4th 631].)

"In California, fraud must be pled specifically; general and conclusory allegations do not suffice." (*Lazar, supra*, 12 Cal.4th at p. 645.) The particularity requirement necessitates that facts be pleaded that show how, when, where, to whom, and by what means of the representations that were allegedly tendered. (*Ibid.*) Further, "[a] plaintiff's burden in asserting a fraud claim against a corporate employer is even greater. In such a case, the plaintiff must 'allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.'" (*Id.* [quoting *Tarmann v. State Farm Mutual Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157].)

The Court agrees that Plaintiffs' FAC lacks this specificity. Plaintiffs must allege facts as to fraudulent representations made by JMH – specifically, who made fraudulent representations on behalf of JMH and their authority to speak. (See *Lazar, supra*, 12 Cal.4th at p. 645; *Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1060.) Plaintiffs' reliance on general marketing material is insufficient. Furthermore, it does not appear from the nature of Plaintiffs' allegations that Defendant must necessarily possess full information concerning the facts of the controversy so as to warrant the Court's application of a lesser standard of specificity to this fraud-based cause of action. Thus, the Court finds that Plaintiffs have failed to allege sufficient facts to state a cause of action for "fraud by intentional misrepresentation and concealment; constructive fraud."

The demurrer to the seventh cause of action is **sustained**, with leave to amend.

8. Tort per se

Finally, Defendants demur to Plaintiffs' cause of action "tort per se." The statutory bases of Plaintiffs tort per se claim are alleged violations of the Business and Professions Code as well as Civil Code section 1770(a)(2) through (5). Defendants argue that the FAC alleges no specific facts in support of these statutory violations, nor is any money or property loss alleged as a result of JMH's actions.

The UCL broadly prohibits "any unlawful, unfair or fraudulent business act or practice" (Bus. & Prof. Code § 17200.) "Because the statute is framed in the disjunctive, a business practice need only meet one of the three criteria to be considered unfair competition." (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1471.) First, unlawful practices include "any practices forbidden by law,

be it civil or criminal, federal, state, or municipal, statutory, regulatory, or court-made.” (*Saunders v. Superior Court* (1994) 27 Cal.App.4th 832, 838-39.) “It is not necessary that the predicate law provide for private civil enforcement.” (*Id.* at 839.) Second, unfair practices are those “whose harm to the victim outweighs its benefits.” (*Ibid.*) Third, fraudulent practices extend beyond those covered by the common law tort and include any practices that are likely to deceive members of the public. (*Buller v. Sutter Health* (2008) 160 Cal.App.4th 981, 986.) The UCL may only be privately enforced “by a person who has suffered injury in fact and has lost money or property as a result of the unfair competition.” (Bus. & Prof. Code § 17204.)

Here, Plaintiffs eighth cause of action identifies Business Code §§ 17500, 17508(a), 17200 and Civil Code section 1770(a)(2) through (5). Rather than allege the essential elements of claims under those sections in the eighth cause of action itself, Plaintiffs allude generally to their entire First Amended Complaint. This is inadequate. Moreover, even if Plaintiffs’ conclusory allegations with respect to economic damages were sufficient, the FAC is bereft of allegations that any specific allegedly unfair and fraudulent conduct by Defendants caused their injury in fact.

The demurrer to the eighth cause of action is **sustained**, with leave to amend.

15. 9:00 AM CASE NUMBER: C25-02933
CASE NAME: OFEILA NOROOZI VS. SANDEEP WALIA, MD
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT**
FILED BY: JOHN MUIR HEALTH WALNUT CREEK MEDICAL CENTER
TENTATIVE RULING:

Before the Court is Defendant John Muir Health, Defendant John Muir Health Walnut Creek Medical Center, Defendant John Muir Health Organized Medical Staff, and Defendant Contra Costa Pediatric Venture LLC (collectively, “Defendants” or “JMH”)’s motion to strike portions of Plaintiff Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi (collectively, “Plaintiffs”) First Amended Complaint. Plaintiffs oppose the Motion.

For the following reasons, the Motion is **granted-in-part** and **denied-in-part**, with leave to amend.

Legal Standard

California Civil Code (“CC”) § 3294 provides in relevant part:

In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant...

(1) “Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and

conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(CC § 3294.)

California Code of Civil Procedure § 436 provides:

The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP § 436.)

Motion

Defendant seeks to strike the following from the First Amended Complaint:

- FAC p. 59:14: Prayer for Damages No. 5, "For punitive damages in a sum according to proof and as the Court deems proper (pursuant to Plaintiffs' CCP § 425.13 Motion and Court Order)."
- FAC p. 59:21: Prayer for Damages No. 9, "Statutory penalties, liquidated penalties, and all other penalties and/or damages that may be permitted by law."
- All of the text in paragraphs 43-48, FAC p. 13:7-15:7.
- All of the text of paragraph 64, FAC p. 26:7-22.
- All of the text of paragraph 85, FAC p. 33:13-26.
- All of the text in paragraphs 94-98, FAC p. 36:16-37:22.
- All of the text in paragraphs 99-102, FAC p. 37:22-38:19 and Exhibits 8 through thereto.

Analysis

Irrelevant and Immaterial Allegations

Defendants seek to strike allegations from the FAC regarding another patient's spinal cord injury treated at UCSF-Benioff (FAC ¶¶ 43-48), allegations regarding the pediatric specialists at UCSF-Benioff (FAC ¶ 64), allegations regarding a physician at LSPCH (FAC at ¶ 85), a section reciting case outcomes for various different patients at JMH (FAC at ¶¶ 94-98), and a section regarding JMH's allegedly poor "infection control" (FAC ¶¶ 99-102 and their exhibits).

Defendants argue that these allegations are redundant, immaterial, and irrelevant. Plaintiffs argue that these are "essential allegations" that are not subject to being stricken. The Court does not agree. None of the allegations Defendants seek to strike are essential to any of the elements of Plaintiffs'

alleged causes of action.

Defendants' motion is **granted** with respect to paragraphs 43-48, paragraph 64, paragraph 85, paragraphs 94-98, and paragraphs 99-102 and their exhibits.

Punitive Damages

Defendant argues that 425.13 precludes Plaintiffs' punitive damages claim; Plaintiffs argue that their fraud claim supports their claim for punitive damages.

In *College Hospital*, the California Supreme Court determined that section 425.13 applies when punitive damages are sought for "any misconduct 'directly related to the professional services provided by the healthcare provider.'" (*College Hospital v. Superior Court* (1994) 8 Cal.4th 704, 714, quoting *Central Pathology Service Medical Clinic, Inc. v. Superior Court* (1992) 3 Cal.4th 181, 189.)

However, intentional torts are not subject to this same requirement. (See *Unruh-Haxton v. Regents of University of California* (2008) 162 Cal.App.4th 343, 355-356 [patients' claims for fraud, conversion, and intentional infliction of emotional distress were related to wrongful intentional conduct, not mere negligence; see also *Perry v. Shaw* (2001) 88 Cal.App.4th 658, 669 [nothing in the legislative history of MICRA suggests the Legislature intended to exempt intentional wrongdoers from liability by treating such conduct as though it had been nothing more than mere negligence].)

Under the above case law, Plaintiffs would appear to be able to seek punitive damages for their claims of negligent infliction of emotional distress and fraud.

Even so, there are insufficient factual allegations to support circumstances of fraud, malice or oppression on the part of this Defendant. The mere fact that an intentional tort is alleged is not sufficient. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) Conclusory allegations of fraud, oppression and malice are not enough. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Where the fraud cause of action is not adequately pleaded, it would not support the claim for punitive damages. Such is the case here.

Furthermore, when seeking punitive damages against a corporation like Defendants, Plaintiffs must allege "advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud or malice ... on the part of an officer, director or managing agent of the corporation." (Civ. Code §3294.) A review of Plaintiff's FAC shows that there are no allegations regarding the conduct of an officer, director, or managing agent of Defendant. Accordingly, this requirement of pleading punitive damages against a corporation has not been satisfied. (See CCP § 3294(b).)

For the foregoing reasons, Defendant's motion is **granted** with respect to the punitive damages allegations.

Attorney's Fees Statutory and Liquidated Penalties

Defendant moves to strike Plaintiffs' prayer for attorney's fees on the grounds that plaintiffs have not

alleged any contractual provision that would entitle them to attorney's fees. Similarly, Defendants move to strike Plaintiffs' prayer for "statutory damages and liquidated penalties."

While Defendant is correct that Plaintiffs have not alleged any contractual provision that would entitle them to attorneys' fees, unsupported attorneys' fee allegations need not be stricken pursuant to a motion to strike, since later discovery may reveal a basis for their recovery. (*Camenisch v. Superior Court* (1996) 44 Cal.App.4th 1689, 1699.) In addition, "[t]here is no requirement that a party plead that it is seeking attorney fees, and there is no requirement that the ground for a fee award be specified in the pleadings." (*Yassin v. Solis* (2010) 184 Cal.App.4th 524, 533.) Attorneys' fees are recoverable as costs if authorized by statute, contract or law. (CCP, § 1033.5, subd. (a)(10).)

As a consequence, Defendant's motion is **denied** with respect to the attorney's fees allegations. However, for similar reasons as the attorney's fees allegations, the Court **denies** the motion as to this portion of Plaintiffs' prayer for relief.

16. 9:00 AM CASE NUMBER: C25-02933
CASE NAME: OFEILA NOROOZI VS. SANDEEP WALIA, MD
HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT
FILED BY: LUCILE SALTER PACKARD CHILDREN'S HOSPITAL AT STANFORD
TENTATIVE RULING:

Before the Court is Lucile Salter Packard Children's Hospital at Stanford ("Defendant" or "LSPCH")'s Demurrer to Plaintiff Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi (collectively, "Plaintiffs") First Amended Complaint.

Defendant demurs to Plaintiffs' causes of action for (3) wrongful death, (4) Negligent infliction of emotional distress (Ofelia Noroozi), (5) Negligent infliction of emotional distress (Payman Noroozi), (6) Negligent infliction of emotional distress (Sahar Noroozi), (7) fraud, and (8) tort per se on several grounds.

For the following reasons, the Demurrer is **overruled-in-part** and **sustained-in-part** (with leave to amend) as described further below.

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008)

161 Cal.App.4th 242, 247.)

Analysis

3. Wrongful Death

Defendant argues that Plaintiffs have failed to allege facts sufficient to state a cause of action for wrongful death against LSPCH.

“A cause of action for wrongful death is ... a statutory claim. (Code Civ. Proc., §§ 377.60–377.62.) Its purpose is to compensate specified persons—heirs—for the loss of companionship and for other losses suffered as a result of a decedent’s death.” (*Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1263.) “The elements of the cause of action for wrongful death are the tort (negligence or other wrongful act), the resulting death, and the damages, consisting of the *pecuniary loss* suffered by the *heirs*.” (*Ibid.*, original italics.)

Typically, the underlying tort which allegedly resulted in wrongful death was professional negligence (i.e., medical malpractice). “The elements of a cause of action for medical malpractice are: (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage.” (*Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305 (*Johnson*).)

Defendant argues that Plaintiffs fail to allege Decedent received any care or treatment from LSPCH, that LSPCH owed Decedent a duty of care, that LSPCH breached a duty of care, or that LSPCH caused Decedent’s death. Defendant argues that at best, Plaintiffs allege LSPCH and JMH formed CCPV and that LSPCH “did business with Defendant JMH.” (FAC at 4:14-23.)

In opposition, Plaintiffs argue that the underlying tort against LSPCH is false and fraudulent advertising, relying on *Boeken v. Philip Morris, Inc.* (2005) 127 Cal.App.4th 1640, 1700 (“This is basically a case of wrongful death resulting from fraudulently marketing a defective product.”). Plaintiffs point to their allegations at FAC ¶¶ 15-20, 49(B)-(C), 66-91, 119(C), 148-161, 165[1]-166[1], 167[2]-170 and Ex. 2, 4, 5, 6.

Plaintiffs also rely on *Stevens v. Parke, Davis & Co.* (1973) 9 Cal.3d 51, 68-69 (*Stevens*). In *Stevens*, the plaintiffs’ family member died after her physician prescribed a drug manufactured by Parke, Davis, due to a condition induced by the drug. In addition to suing the prescribing physician, the plaintiffs successfully sued Parke, Davis for “overpromoting” the drug, and “watering down” the warnings concerning the drug’s link to the fatal condition. (*Id.* at p. 66.) In the Supreme Court, the drug company argued its overpromotion and watered-down warnings were not proven to be the cause of death because the prescribing doctor admitted he was aware that the drug had been linked to the condition and that its “prolonged administration carried some danger of fatality.” (*Id.* at p. 67, fn. 15; *id.* at pp. 66–67.) The doctor had also testified that he obtained that information from articles in medical journals and from discussions with fellow physicians, and he could not remember specific

instances in which he received any information, promotional or otherwise, directly from Parke, Davis, although he had received visits from drug salesmen and read journals which contained advertisements for the drug. (*Id.* at p. 68, fn. 16.) The court affirmed the jury's verdict. It concluded there was "adequate circumstantial evidence in the record ... to support a reasonable inference by the jury that [the physician] was induced to prescribe the drug for [the decedent] because of Parke, Davis' overpromotion. Like many others of the profession, he had been exposed to the promotional tactics employed by Parke, Davis. It is reasonable to assume that the company's efforts consciously or subconsciously influenced him." (*Id.*)

Defendant has not cited any authority, and the Court is not aware of any, that would preclude a wrongful death claim based on alleged fraudulent marketing. The Court is also not aware of any authority that would require Plaintiffs to separately plead a fraudulent marketing claim rather than predicated a wrongful death claim on fraudulent marketing allegations. As a consequence, Defendant's demurrer to Plaintiffs' wrongful death claim is **overruled**.

4, 5, 6. Negligent Infliction of Emotional Distress

Defendant argues that Plaintiffs have not alleged facts sufficient to state their causes of action for negligent infliction of emotional distress.

"[A] plaintiff may recover damages for emotional distress caused by observing the negligently inflicted injury of a third person if, but only if, said plaintiff: (1) is closely related to the injury victim; (2) is present at the scene of the injury producing event at the time it occurs and is then aware that it is causing injury to the victim; and (3) as a result suffers serious emotional distress-a reaction beyond that which would be anticipated in a disinterested witness and which is not an abnormal response to the circumstances." (*Thing v. La Chusa* (1989) 48 Cal.3d 644, 667-668; accord *Downey v. City of Riverside* (2024) 16 Cal.5th 539, 550.) "Neither our precedent nor considerations of tort policy support requiring plaintiffs asserting bystander emotional distress claims to show contemporaneous perception of the causal link between the defendant's conduct and the victim's injuries." (*Downey, supra*, 16 Cal.5th at p. 560.) Nevertheless, the Supreme Court's analysis in *Bird v. Saenz* (2002) 28 Cal.4th 910 "remains the controlling precedent for negligent infliction of emotional distress claims arising from the provision of deficient medical care to a close relative." (*Id.* at p. 560, fn. 11.)

"*Bird* placed particular emphasis on how difficult-often impossible-it generally is for laypersons to recognize in the moment that a course of medical treatment is causing injury. Even when plaintiffs are present at the scene of the injury-causing event and observe conduct that they later realize caused injury to a close relative, their lack of medical knowledge will ordinarily keep them from being 'then aware that it [was] causing injury to the victim.' [Citation]." (*Downey, supra*, 16 Cal.5th at p. 554.) "In such cases, the injury-causing events or conduct are not traumatizing because they are perceived as injury-causing only in retrospect, when the observer is affected by the event's results." (*Ibid.*) "*Bird* itself made clear that the injury caused by medical negligence is different in this regard from many other types of injury- producing events. We explained that the invisibility of injury-causing events

resulting from deficient medical care makes a typical medical negligence case distinguishable from, for instance, a case arising from ‘an explosion, traffic accident, or electrocution.’ [Citation].” (*Ibid.*)

Here, Plaintiffs allege that Amin Noroozi died following a traumatic diving accident “due to Defendants’ gross negligence in managing life-threatening complications that should have been anticipated and treated according to established medical protocols.” (FAC at ¶ 1.) They allege several “systemic failures in post-surgical care of Amin Noroozi’s spinal cord injury” (*id.* at 16:9) including “treat[ing] Amin with multiple drugs that were contraindicated for his specific condition” (*id.* at 17:10-11) which “exacerbated his cardiovascular instability and contributed to his deterioration.” (*id.* at ¶ 52(A).) They also allege that “Amin experienced severe thermoregulatory dysfunction” as a result of Defendants failure to implement “appropriate temperature monitoring and cooling protocols from the outset.” (*id.* at ¶ 52(B).) Plaintiffs allege that Defendants inadequately responded to Amin Noroozi’s severe hypokalemia and failed to adequately manage his sodium levels. (FAC at ¶ 52(D).) Plaintiffs further allege Defendants failed to implement basic infection screening protocols (*id.* at ¶ 52(E)), exacerbated decedent’s acute kidney injury (*id.* at ¶ 52(F)), and that Defendants “failed to properly assess and treat neurogenic shock resulting from Amin’s high cervical injury.” (*id.* at ¶ 52(G).

Plaintiffs also allege that Defendants failed to “effectively address sepsis, a 109-degree temperature, and unbalanced potassium levels[.]” (*id.* at ¶ 128.) They further allege that Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi were each at Amin Noroozi’s bedside when his fever spiked to 109 degrees and he was not provided with any intervention besides Ibuprofen. (*id.* at ¶¶ 131, 138, 144.)

The Supreme Court in *Bird* drew an important distinction between circumstances involving unperceived medical errors in providing treatment and the circumstances in *Ochoa v. Superior Court* (1985) 39 Cal.3d 159, where the “injury-producing event was the failure of custodial authorities to respond significantly to symptoms obviously requiring immediate medical attention.” (*Bird, supra*, 28 Cal.4th at pp. 919-920.) In drawing this distinction, the Court explained that “[s]uch a failure to provide medical assistance, as opposed to a misdiagnosis, unsuccessful treatment, or treatment that turns out to have been inappropriate only in retrospect, is not necessarily hidden from the understanding awareness of a layperson.” (*id.* at p 920.) Although Plaintiffs argue that the alleged conduct in their amended complaint falls within the former category (see Opp. at 6:18-24), the pleaded facts appear to place the action within the latter category. Plaintiffs’ allegations suggest continued misdiagnosis, unsuccessful treatment, and use of inappropriate treatments of the decedent during his hospitalization rather than a complete failure to diagnose his condition or provide any treatment to him. (*Bird, supra*, 28 Cal.4th at pp. 921 [“In any event, a rule permitting bystanders to sue for NIED on account of unperceived medical errors hidden in a course of treatment cannot be reconciled with *Thing’s* requirement that the plaintiff be aware of the connection between the injury-producing event and the injury.”].)

For these reasons, Defendant’s demurrer to the fourth, fifth, and sixth causes of action for negligent infliction of emotional distress is **sustained**, with leave to amend.

7. Fraud

Defendant demurs to Plaintiffs' cause of action for fraud on the grounds that it lacks the requisite specificity.

"The elements of fraud are misrepresentation, knowledge of falsity, intent to induce reliance on the misrepresentation, justifiable reliance on the misrepresentation, and resulting damages." (*Reeder v. Specialized Loan Servicing LLC* (2020) 52 Cal.App.5th 795, 803 [citing *Lazar v. Superior Court* (1996) 12 Cal.4th 631].)

"In California, fraud must be pled specifically; general and conclusory allegations do not suffice." (*Lazar, supra*, 12 Cal.4th at p. 645.) The particularity requirement necessitates that facts be pleaded that show how, when, where, to whom, and by what means of the representations that were allegedly tendered. (*Ibid.*) Further, "[a] plaintiff's burden in asserting a fraud claim against a corporate employer is even greater. In such a case, the plaintiff must 'allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.'" (*Id.* [quoting *Tarmann v. State Farm Mutual Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157].)

Plaintiffs' FAC lacks this specificity, particularly with respect to LSPCH. Plaintiffs must allege facts as to fraudulent representations made by LSPCH – specifically, who made fraudulent representations on behalf of LSPCH and their authority to speak. (See *Lazar, supra*, 12 Cal.4th at p. 645; *Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1060.) Furthermore, it does not appear from the nature of Plaintiffs' allegations that Defendant must necessarily possess full information concerning the facts of the controversy so as to warrant the Court's application of a lesser standard of specificity to this fraud-based cause of action. Thus, the Court finds that Plaintiffs have failed to allege sufficient facts to state a cause of action for "fraud by intentional misrepresentation and concealment; constructive fraud."

The demurrer to the seventh cause of action is **sustained**, with leave to amend.

8. Tort per se

Finally, Defendant demurs to Plaintiffs' cause of action "tort per se." The statutory bases of Plaintiffs tort per se claim are alleged violations of the Business and Professions Code as well as Civil Code section 1770(a)(2) through (5).

The UCL broadly prohibits "any unlawful, unfair or fraudulent business act or practice" (Bus. & Prof. Code § 17200.) "Because the statute is framed in the disjunctive, a business practice need only meet one of the three criteria to be considered unfair competition." (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1471.) First, unlawful practices include "any practices forbidden by law, be it civil or criminal, federal, state, or municipal, statutory, regulatory, or court-made." (*Saunders v. Superior Court* (1994) 27 Cal.App.4th 832, 838-39.) "It is not necessary that the predicate law provide for private civil enforcement." (*Id.* at 839.) Second, unfair practices are those "whose harm to the victim outweighs its benefits." (*Ibid.*) Third, fraudulent practices extend beyond those covered by the

common law tort and include any practices that are likely to deceive members of the public. (*Buller v. Sutter Health* (2008) 160 Cal.App.4th 981, 986.) The UCL may only be privately enforced "by a person who has suffered injury in fact and has lost money or property as a result of the unfair competition." (Bus. & Prof. Code § 17204.)

Here, Plaintiffs eighth cause of action identifies Business Code §§ 17500, 17508(a), 17200 and Civil Code section 1770(a)(2) through (5). Rather than allege the essential elements of claims under those sections in the eighth cause of action itself, the Court presumes the Plaintiffs believe their general allegations are sufficient to state violations of each of these statutes. Plaintiffs also concede in their opposition that their theory of UCL violation against LSPCH is premised on a sort of joint tortfeasor/vicarious liability theory with John Muir Health—specifically, they argue that JMH fraudulently advertised its skills, and that LSPCH “acted in concert with JMH in committing the fraudulent acts alleged.” (Opp. at 12-14.)

The Court is not aware of any authority, and Plaintiffs have not cited any, that would support this theory of liability in UCL claims. Their concession that the fraudulent acts alleged in the FAC are only as to John Muir Health is fatal to their UCL (and Civil Code) claims against LSPCH.

The demurrer to the eighth cause of action is **sustained**, with leave to amend.

17. 9:00 AM CASE NUMBER: C25-02933
CASE NAME: OFEILA NOROOZI VS. SANDEEP WALIA, MD
***HEARING ON MOTION IN RE: TO STRIKE PLAINTIFFS' FIRST AMENDED COMPLAINT**
FILED BY: LUCILE SALTER PACKARD CHILDREN'S HOSPITAL AT STANFORD
TENTATIVE RULING:

Before the Court is Lucile Salter Packard Children’s Hospital at Stanford (“Defendant” or “LSPCH”)’s motion to strike portions of Plaintiff Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi (collectively, “Plaintiffs”) First Amended Complaint. Plaintiffs oppose the Motion.

For the following reasons, the Motion is **granted-in-part** and **denied-in-part**, with leave to amend.

Legal Standard

California Civil Code (“CC”) § 3294 provides in relevant part:

In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant...

(1) “Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and

conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(CC § 3294.)

California Code of Civil Procedure § 436 provides:

The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP § 436.)

Motion

Defendant seeks to strike the following from the First Amended Complaint:

- Page/Lines - 56:28-57:1: "Defendants, and each of them, are liable for exemplary and punitive damages and reasonable attorney's fees..."
- Page/Lines – 59:14-15: "For punitive damages in a sum according to proof and as the Court deems proper (pursuant to Plaintiffs' CCP § 425.13 Motion and Court Order);"
- Page/Lines – 59:21-22: "Statutory penalties, liquidated penalties, and all other penalties and/or damages that may be permitted by law;" and
- Page/Lines – 59:24: "Reasonable attorney's fees according to proof and as allowed by law."

Analysis

Punitive Damages

Defendant argues that 425.13 precludes Plaintiffs' punitive damages claim; Plaintiffs argue that it does not apply to Plaintiffs' claims against LPSC. Plaintiffs also argue that their fraud claim supports their claim for punitive damages.

In *College Hospital*, the California Supreme Court determined that section 425.13 applies when punitive damages are sought for "any misconduct 'directly related to the professional services provided by the healthcare provider.'" (*College Hospital v. Superior Court* (1994) 8 Cal.4th 704, 714, quoting *Central Pathology Service Medical Clinic, Inc. v. Superior Court* (1992) 3 Cal.4th 181, 189.)

However, intentional torts are not subject to this same requirement. (See *Unruh-Haxton v. Regents of University of California* (2008) 162 Cal.App.4th 343, 355-356 [patients' claims for fraud, conversion,

and intentional infliction of emotional distress were related to wrongful intentional conduct, not mere negligence; see also *Perry v. Shaw* (2001) 88 Cal.App.4th 658, 669 [nothing in the legislative history of MICRA suggests the Legislature intended to exempt intentional wrongdoers from liability by treating such conduct as though it had been nothing more than mere negligence].)

Under the above case law, Plaintiffs would appear to be able to seek punitive damages for their claims of negligent infliction of emotional distress and fraud.

Even so, there are insufficient factual allegations to support circumstances of fraud, malice or oppression on the part of this Defendant. The mere fact that an intentional tort is alleged is not sufficient. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) Conclusory allegations of fraud, oppression and malice are not enough. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Where the fraud cause of action is not adequately pleaded, it would not support the claim for punitive damages. Such is the case here.

Furthermore, when seeking punitive damages against a corporation like Defendant, Plaintiffs must allege “advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud or malice ... on the part of an officer, director or managing agent of the corporation.” (Civ. Code §3294.) A review of Plaintiff’s FAC shows that there are no allegations regarding the conduct of an officer, director, or managing agent of Defendant. Accordingly, this requirement of pleading punitive damages against a corporation has not been satisfied. (See CCP § 3294(b).)

For the foregoing reasons, Defendant’s motion is **granted** with respect to the punitive damages allegations.

Attorney’s Fees

Defendant moves to strike Plaintiffs’ prayer for attorney’s fees on the grounds that plaintiffs have not alleged any contractual provision that would entitle them to attorney’s fees.

While Defendant is correct that Plaintiffs have not alleged any contractual provision that would entitle them to attorneys’ fees, unsupported attorneys’ fee allegations need not be stricken pursuant to a motion to strike, since later discovery may reveal a basis for their recovery. (*Camenisch v. Superior Court* (1996) 44 Cal.App.4th 1689, 1699.) In addition, “[t]here is no requirement that a party plead that it is seeking attorney fees, and there is no requirement that the ground for a fee award be specified in the pleadings.” (*Yassin v. Solis* (2010) 184 Cal.App.4th 524, 533.) Attorneys’ fees are recoverable as costs if authorized by statute, contract or law. (CCP, § 1033.5, subd. (a)(10).)

As a consequence, Defendant’s motion is **denied** with respect to the attorney’s fees allegations.

Statutory and Liquidated Penalties

Similarly, Defendants move to strike Plaintiffs’ prayer for “statutory damages and liquidated penalties.” However, for similar reasons as above, the Court **denies** the motion as to this portion of Plaintiffs’

prayer for relief.

18. 9:00 AM CASE NUMBER: C25-02933
CASE NAME: OFEILA NOROOZI VS. SANDEEP WALIA, MD
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: WALIA, SANDEEP, MD
TENTATIVE RULING:

Before the Court is Defendant Sandeep Walia, M.D. (“Defendant” or “Walia”)’s Demurrer to Plaintiff Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi (collectively, “Plaintiffs”) First Amended Complaint.

Defendant demurs to Plaintiffs’ causes of action for (1) professional negligence, (4) Negligent infliction of emotional distress (Ofelia Noroozi), (5) Negligent infliction of emotional distress (Payman Noroozi), (6) Negligent infliction of emotional distress (Sahar Noroozi), and (7) fraud.

For the following reasons, the Demurrer is **sustained**, with leave to amend.

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

As a threshold issue, the Court declines to sustain the Demurrer on the grounds of uncertainty. Uncertainty is a disfavored ground for demurring to a complaint. (See, e.g., *Khoury v. Maly’s of California* (1993) 14 Cal.App.4th 612, 616; 1 Weil & Brown, Civil Procedure Before Trial (The Rutter Group 2011) § 7:84, p. 7(l)-39.) A demurrer for uncertainty generally will be sustained only when the complaint is such that the defendant cannot even determine what it must respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.)

While true that the FAC relies largely on group allegations against all Defendants, it is not so unclear that Defendant cannot even determine what he must respond to. That said, because the Court sustains the Defendant’s demurrer with leave to amend, it would behoove the Plaintiffs to amend with greater clarity as between all the Defendants.

1. Professional Negligence

First, Defendant demurs to this cause of action on the grounds that it is duplicative of Plaintiffs' wrongful death cause of action.

A demurrer may be sustained when a cause of action is duplicative of another cause of action and thus adds nothing to the complaint by way of fact or theory of recovery. (*Palm Springs Villas II Homeowners Association, Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290; *Award Metals, Inc. v. Superior Court* (1991) 228 Cal.App.3d 1128, 1135; but see *Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 889-890 [duplicative causes of action are "the sort of defect that, if it justifies any judicial intervention at all, is ordinarily dealt with most economically at trial, or on a dispositive motion such as summary judgment."].)

Flowers v. Torrance Memorial Hospital Medical Center (1994) 8 Cal.4th 992, 995 is instructive with respect to duplicative causes of action in the medical negligence context. The Supreme Court of California considered the distinction between ordinary and professional negligence and stated that the distinction between "ordinary" and "professional" negligence is relevant "primarily when the Legislature has statutorily modified, restricted, or otherwise conditioned some aspect of an action for malpractice not directly related to the elements of negligence itself," such as with the statute of limitations or the application of the Medical Injury Compensation Reform Act ("MICRA"). (*Flowers, supra*, 8 Cal.4th at p. 998-999.) Nonetheless, the court stated that the "substance of such actions on the issues of duty, standard of care, breach, and causation remains unaffected." (*Id.* at p. 999.) The court rejected the appellate court's finding that a factual predicate "can give rise to two independent obligations to exercise due care according to two different standards," calling it a "legal impossibility" because "a defendant has only one duty, measured by one standard of care, under any given circumstances." (*Id.* at p. 1000.)

Here, Plaintiffs' causes of action for professional negligence and wrongful death are based on the same factual predicate: Amin Noroozi's allegedly poor care at John Muir Health following a diving accident. Furthermore, a review of Plaintiffs' first cause of action for professional negligence and third cause of action for wrongful death does not reveal different theories of liability. Thus, the Court finds that Plaintiffs' first and third causes of action are duplicative.

Defendant's demurrer to the first cause of action is **sustained**, with leave to amend.

4, 5, 6. Negligent Infliction of Emotional Distress

Defendant argues that Plaintiffs have not alleged facts sufficient to state their causes of action for negligent infliction of emotional distress.

"[A] plaintiff may recover damages for emotional distress caused by observing the negligently inflicted injury of a third person if, but only if, said plaintiff: (1) is closely related to the injury victim; (2) is present at the scene of the injury producing event at the time it occurs and is then aware that it is causing injury to the victim; and (3) as a result suffers serious emotional distress-a reaction beyond

that which would be anticipated in a disinterested witness and which is not an abnormal response to the circumstances.” (*Thing v. La Chusa* (1989) 48 Cal.3d 644, 667-668; accord *Downey v. City of Riverside* (2024) 16 Cal.5th 539, 550.) “Neither our precedent nor considerations of tort policy support requiring plaintiffs asserting bystander emotional distress claims to show contemporaneous perception of the causal link between the defendant's conduct and the victim's injuries.” (*Downey, supra*, 16 Cal.5th at p. 560.) Nevertheless, the Supreme Court’s analysis in *Bird v. Saenz* (2002) 28 Cal.4th 910 “remains the controlling precedent for negligent infliction of emotional distress claims arising from the provision of deficient medical care to a close relative.” (*Id.* at p. 560, fn. 11.)

“*Bird* placed particular emphasis on how difficult-often impossible-it generally is for laypersons to recognize in the moment that a course of medical treatment is causing injury. Even when plaintiffs are present at the scene of the injury-causing event and observe conduct that they later realize caused injury to a close relative, their lack of medical knowledge will ordinarily keep them from being ‘then aware that it [was] causing injury to the victim.’ [Citation].” (*Downey, supra*, 16 Cal.5th at p. 554.) “In such cases, the injury-causing events or conduct are not traumatizing because they are perceived as injury-causing only in retrospect, when the observer is affected by the event’s results.” (*Ibid.*) “*Bird* itself made clear that the injury caused by medical negligence is different in this regard from many other types of injury- producing events. We explained that the invisibility of injury-causing events resulting from deficient medical care makes a typical medical negligence case distinguishable from, for instance, a case arising from ‘an explosion, traffic accident, or electrocution.’ [Citation].” (*Ibid.*)

Here, Plaintiffs allege that Amin Noroozi died following a traumatic diving accident “due to Defendants’ gross negligence in managing life-threatening complications that should have been anticipated and treated according to established medical protocols.” (FAC at ¶ 1.) They allege several “systemic failures in post-surgical care of Amin Noroozi’s spinal cord injury” (*id.* at 16:9) including “treat[ing] Amin with multiple drugs that were contraindicated for his specific condition” (*id.* at 17:10-11) which “exacerbated his cardiovascular instability and contributed to his deterioration.” (*Id.* at ¶ 52(A).) They also allege that “Amin experienced severe thermoregulatory dysfunction” as a result of Defendants failure to implement “appropriate temperature monitoring and cooling protocols from the outset.” (*Id.* at ¶ 52(B).) Plaintiffs allege that Defendants inadequately responded to Amin Noroozi’s severe hypokalemia and failed to adequately manage his sodium levels. (FAC at ¶ 52(D).) Plaintiffs further allege Defendants failed to implement basic infection screening protocols (*id.* at ¶ 52(E)), exacerbated decedent’s acute kidney injury (*id.* at ¶ 52(F)), and that Defendants “failed to properly assess and treat neurogenic shock resulting from Amin’s high cervical injury.” (*Id.* at ¶ 52(G).

Plaintiffs also allege that Defendants failed to “effectively address sepsis, a 109-degree temperature, and unbalanced potassium levels[.]” (*Id.* at ¶ 128.) They further allege that Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi were each at Amin Noroozi’s bedside when his fever spiked to 109 degrees and he was not provided with any intervention besides Ibuprofen. (*Id.* at ¶¶ 131, 138, 144.)

The Supreme Court in *Bird* drew an important distinction between circumstances involving unperceived medical errors in providing treatment and the circumstances in *Ochoa v. Superior Court*

(1985) 39 Cal.3d 159, where the “injury-producing event was the failure of custodial authorities to respond significantly to symptoms obviously requiring immediate medical attention.” (*Bird, supra*, 28 Cal.4th at pp. 919-920.) In drawing this distinction, the Court explained that “[s]uch a failure to provide medical assistance, as opposed to a misdiagnosis, unsuccessful treatment, or treatment that turns out to have been inappropriate only in retrospect, is not necessarily hidden from the understanding awareness of a layperson.” (*Id.* at p 920.) Although Plaintiffs argue that the alleged conduct in their amended complaint falls within the former category (see Opp. at 6:18-24), the pleaded facts appear to place the action within the latter category. Plaintiffs’ allegations suggest continued misdiagnosis, unsuccessful treatment, and use of inappropriate treatments of the decedent during his hospitalization rather than a complete failure to diagnose his condition or provide any treatment to him. (*Bird, supra*, 28 Cal.4th at pp. 921 [“In any event, a rule permitting bystanders to sue for NIED on account of unperceived medical errors hidden in a course of treatment cannot be reconciled with *Thing*’s requirement that the plaintiff be aware of the connection between the injury-producing event and the injury.”].)

For these reasons, Defendant’s demurrer to the fourth, fifth, and sixth causes of action for negligent infliction of emotional distress is **sustained**, with leave to amend.

7. Fraud

Defendant demurs to Plaintiffs’ cause of action for fraud on the grounds that it lacks the requisite specificity—that the FAC “does not identify any specific misrepresentation made by defendant Dr. Sandeep Walia, nor does it allege that Dr. Walia personally participated in, authorized, or had any role in the hospital’s advertising, marketing, or public branding activities.” (Dem. at § V(E).) Plaintiffs essentially concede this point in opposition. (Opp. at 12:25-26 [“Plaintiffs concedes that it would strengthen and clarify their claim to plead additional, more specific facts regarding (1) Dr. Walia’s participation in Defendants’ scheme to defraud the public (including Plaintiffs) and/or (2) his individual concealments/misrepresentations made directly to Plaintiffs regarding his/JMH’s qualifications and abilities to competently treat and care for Amin.”].)

The demurrer to the seventh cause of action is **sustained**, with leave to amend.

19. 9:00 AM CASE NUMBER: C25-03121

CASE NAME: JACOB CANALE VS. KELLY BOZARTH

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: BOZARTH, KELLY

TENTATIVE RULING:

Before the Court is Defendants Center for Social Dynamics, LLC, and Kelly Bozarth’s Demurrer to Plaintiff’s Complaint. The Complaint alleges a single cause of action for violation of the Private Attorneys General Act (“PAGA”), California Labor Code § 2698 et seq.

Allegations in the Complaint

Plaintiff was employed by Defendants as an hourly-paid, non-exempt employee from approximately August 2023 to approximately January 2025. (¶ 21.) Defendants also employed other hourly-paid or non-exempt employees during all relevant times (the “other aggrieved employees”). (¶ 20.) Plaintiff and the other aggrieved employees worked over eight hours in a day and/or forty hours in a week during their employment. (¶ 27.)

It is alleged that Defendants failed to compensate Plaintiff and the other aggrieved employees for all hours worked, missed meal periods, or missed rest breaks. (¶ 22.) Plaintiff and the other aggrieved employees also did not receive wages for overtime compensation to which they were entitled (¶ 29), nor did they receive complete and accurate wage statements (¶ 36.)

The Complaint alleges that PAGA claims are allowed for any violation of numerous separate Labor Code violations. It then notes that the PAGA claim is based on nine separate underlying violations related to Defendants failure to: (1) pay overtime; (2) provide meal periods; (3) provide rest periods; (4) pay minimum wages; (5) pay wages upon termination; (6) timely pay wages during employment; (7) provide complete and accurate wage statements; (8) keep complete and accurate payroll records; and (9) reimburse necessary business-related expenses and costs.

Standard of Review

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (Cal. Code Civ. Proc. § 430.40; *see Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Analysis

Defendants demur to the entirety of the single cause of action for PAGA violations. They argue that the Complaint fails to state facts sufficient to support a PAGA claim.

Center for Social Dynamics, LLC’s (“CSD”) Demurrer

PAGA “authorizes a representative action only for the purpose of seeking statutory penalties for Labor Code violations.” (*Iskanian v. CLS Transp. Los Angeles, LLC* (2015) 59 Cal.4th 348, 381.) Thus, there

must be an underlying Labor Code violation to state a cause of action under PAGA. (See e.g. *Stone v. Alameda Health System* (2024) 16 Cal.5th 1040, 1076-77 stating that if there is no underlying violation any PAGA claim seeking penalties for such a violation “must also fail.”)

Statutory claims must be pled with particularity. (*Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790.) “Pleading in the language of the statute is acceptable provided that sufficient facts are pleaded to support the allegations.” (*Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963.)

The complaint alleges a single cause of action pursuant to PAGA, though premised on numerous Labor Code violations. If Plaintiff has adequately set forth a single Labor Code violation in the complaint the entire demurrer must be overruled. (See e.g. *Kim v. Reins International California Inc.* (2020) 9 Cal.5th 73, 85 “An employee has PAGA standing if ‘one or more of the alleged violations was committed’ against him,” quoting Labor Code 2699(c), italics added.) Defendant demurred to the single cause of action in its entirety. As framed by Defendant, the only way the demurrer could be sustained is if Plaintiff failed to set forth any Labor Code violation whatsoever.

“If the complaint states a cause of action under any theory ... that aspect of the complaint is good against the demurrer.” (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

The Complaint alleges, among other violations, failure to pay overtime wages under Labor Code section 510. (¶ 54.) Labor Code section 510 provides, in pertinent part, that any “work in excess of eight hours in one workday and any work in excess of 40 hours in any one workweek ... shall be compensated at the rate of no less than one and one-half times the regular rate of pay for an employee.” (Labor Code § 510(a).)

The Complaint alleges that “Plaintiff and the other aggrieved employees worked over eight (8) hours in a day and/or forty (40) hours in a week during their employment with Defendants.” (¶ 27.) It also alleges that they were “entitled to receive certain wages for overtime compensation and that they were not receiving wages for overtime compensation.” (¶ 29, see also ¶ 34.) Likewise, “Plaintiff and other aggrieved employees were required to work more than eight (8) hours per day and/or forty (40) hours per week without overtime compensation.” (¶ 40.) The above allegations set forth a Labor Code violation for failing to pay overtime.

Defendant appears to argue that Plaintiff is required to plead specific dates upon which the alleged violations occurred. A “complaint ordinarily is sufficient if it alleges ultimate rather than evidentiary facts.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) “A complaint ... is generally not deficient merely because it fails to describe the particular date when a defendant’s misconduct began.” (*Rojas-Cifuentes v. Superior Court* (2020) 58 Cal.App.5th 1051, 1060.) “It has been consistently held that ‘a plaintiff is required only to set forth the essential facts of his case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of

action” (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099 “Doheny”) cited with approval by *Doe* 42 Cal.4th at 550.) There is nothing in the PAGA statute that requires a heightened pleading standard.

In addition, the doctrine of ‘less particularity’ provides that “[l]ess particularity [in pleading] is required when it appears that defendant has superior knowledge of the facts, so long as the pleading gives notice of the issues sufficient to enable preparation of a defense.” (*Doe*, supra, 42 Cal.4th at 549-50.) “The particularity required in pleading facts depends on the extent to which the defendant in fairness needs detailed information that can be conveniently provided by the plaintiff; less particularity is required where the defendant may be assumed to have knowledge of the facts equal to that possessed by the plaintiff.” (*Doheny*, supra, 132 Cal.App.4th at 1099.)

Plaintiff has set forth a violation of the Labor Code and has therefore stated a PAGA cause of action. Again, only a single Labor Code violation is necessary to state a PAGA cause of action. Thus, even if Defendant’s were correct that Plaintiff has failed to allege any other Labor Code violations, Plaintiff has still alleged a PAGA cause of action. Indeed, a “demurrer cannot rightfully be sustained to a part of a cause of action or to a particular type of damage or remedy.” (*Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1047.)

Kelly Bozarth’s Demurrer

The specific allegations regarding Ms. Bozarth are quite limited. It is alleged that Ms. Bozarth “was acting either individually or as an officer, owner, director, agent, or employee of” CSD and that she “caused and continues to cause all of the wage and hour violations” alleged in the Complaint. (¶ 7.) All acts alleged were committed with her “ratification, knowledge, permission, encouragement, authorization, and/or consent.” (¶ 9.)

An individual cannot be personally liable under Labor Code section 558.1 “simply by virtue of his or her status as an owner, director or officer but must have been ‘personally involved’ in the alleged violations’ or ‘engaged in ‘individual wrongdoing.’” (*Espinoza v. Hepta Run, Inc.* (2022) 74 Cal.App.5th 44, 59.) In other words, an “individual must have engaged in some affirmative action beyond his or her status as an owner, officer or director of the corporation.” (*Ibid.*)

Statutory claims must be pled with particularity. (*Covenant Care, Inc.*, supra, 32 Cal.4th at 790.) Here, there are no specific factual allegations describing what Ms. Bozarth allegedly did to violate the Labor Code beyond the vague and unsubstantiated contention that she ‘caused ... all of the wage and hour violations....’ (¶ 7.) In addition, the Complaint is uncertain in that it also alleges that Ms. Bozarth, “at all times herein relevant, was acting either individually or as an officer, owner, director, agent, or employee of” CSD. (¶ 7.) If she were acting ‘individually’ when she acted it is unclear how liability would attach for acts unrelated to her connection to CSD.

Leave to Amend

“Our Supreme Court has observed that where ‘plaintiff has not had an opportunity to amend the

complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment.” (*Eghtesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 412 quoting *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.)

The Complaint does not show on its face that it is incapable of amendment. As such, Plaintiff is granted leave to amend.

Conclusion

Based on the above, Defendant CSD’s demur is **overruled**. Ms. Bozarth’s demur is **sustained**. Plaintiff is granted leave to amend as to the claims against Ms. Bozarth. Plaintiff shall file an amended complaint within 10 days of notice of entry of this Order.

20. 9:00 AM CASE NUMBER: C25-03121
CASE NAME: JACOB CANALE VS. KELLY BOZARTH
*HEARING ON MOTION IN RE: TO STRIKE PLTFS COMPLAINT
FILED BY: BOZARTH, KELLY
TENTATIVE RULING:

Before the Court is Defendants’ Center for Social Dynamics, LLC, and Kelly Bozarth’s Motion to Strike Plaintiff’s Complaint.

Defendants’ unopposed Request for Judicial Notice is **granted**.

Factual Allegations

See Line 19.

Scope of Motion

Defendants seek to strike two categories of allegations, those related to (1) Plaintiff’s PAGA claim generally, and (2) the claims against Defendant Bozarth. The Court will address each category separately.

Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. § 435 (b)(1); Cal. Rules of Court, Rule 3.1322(b).)

The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Cal. Code Civ. Proc. §§ 436(a)-(b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782 [“matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].) An “irrelevant” matter includes allegations not essential to

the claim or defense, as well as allegations “neither pertinent to nor supported by an otherwise sufficient claim or defense.” (CCP§ 431.10 (b).)

Analysis

PAGA Allegations

Defendants indicate that they are seeking to strike allegations in the complaint to the extent that Plaintiff seeks relief for any time prior to October 1, 2024, because of the *Gibson* PAGA Settlement – discussed below. (Notice at 1:7-11.)

The Gibson Action

On March 2, 2023, a class action complaint was filed against CSD in San Mateo Superior Court (the “*Gibson* Action”). (RJN Ex. 1.) The *Gibson* Action included eight causes of action that involved seven Labor Code violations, namely failure to: (1) pay minimum wages; (2) pay overtime; (3) provide meal periods; (4) authorize and permit rest breaks; (5) reimburse necessary business expenses; (6) timely pay final wages; and (7) provide accurate itemized wage statements. (*Ibid.*) It also included a UCL claim. (*Ibid.*) An amended Complaint was filed in the *Gibson* action in May 2023, alleging a PAGA cause of action based on these Labor Code violations. (RJN Ex. 2.)

The parties to the *Gibson* Action were able to come to a final settlement to resolve the claims asserted therein. The San Mateo Court granted final approval of the *Gibson* Action PAGA claims on July 24, 2025. (RJN Ex. 4.)

Defendants argue that res judicata bars Plaintiff’s claims and supports striking the relevant paragraphs.

“The doctrine is applicable ‘if (1) the decision in the prior proceeding is final and on the merits; (2) the present proceeding is on the *same cause of action* as the prior proceeding; and (3) the parties in the present proceeding or parties in privity with them were parties to the prior proceeding.’” (*Villacres v. ABM Industries Inc.* (2010) 189 Cal.App.4th 562, 577 citation omitted.) “Res judicata may not apply if the subsequent action seeks to vindicate a public interest and the prior action served only a private interest.” (*Id.* at 581.)

Defendants are correct that to the extent the current complaint encompasses claims raised in the *Gibson* Action and settled as part of the *Gibson* PAGA Settlement, Plaintiff will be precluded from pursuing those claims in this action.

Scope of the Gibson PAGA Settlement

The *Gibson* PAGA Settlement related to a claims period of March 2, 2022, through September 30, 2024. (*Ibid.*) “Aggrieved employees’ in the *Gibson* PAGA Settlement were defined as “all current and former non-exempt hourly Clinical Leaders, Clinical Directors, and Behavioral Specialists employed by Defendants during the PAGA Period.” (*Ibid.*)

Defendants assert that “Plaintiff in the instant Complaint is himself Behavioral Specialist and a member of the *Gibson* Action.” (Mtn. at 2:23-24.) They provide no citation for this statement. They also note that the Complaint in this action alleges that Plaintiff was employed from August 2023 to approximately January 2025. (see e.g. ¶ 21.) The PAGA claim applies to “all times herein set forth” related to violations committed against Plaintiff “during his time of employment....” (e.g. ¶¶ 13, 16, 20.) Defendants argue that because Plaintiff’s claims prior to October 1, 2024, overlap with the *Gibson* PAGA Settlement they are foreclosed as a matter of law. (Mtn. at 4:18-19.)

“The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc. § 437(a).)

While Defendant asserts that Plaintiff Jacob Canale is a Behavioral Specialist and a member of the *Gibson* Action, there are no such allegations in the Complaint in this matter that indicate this to be the case. The Complaint merely alleges that Plaintiff was “employed by” and “worked for” Defendant. (e.g. ¶¶ 16, 20, 21, 22, 27.) There is no description of what type of work she performed nor her title while she was employed by Defendant.

It may well be true that Plaintiff was a Behavioral Specialist that is covered by the *Gibson* PAGA Settlement. The Court, however, cannot make that determination based on the pleadings and matters of which it is taking judicial notice. On this basis alone, the motion to strike must be denied.

Defendants seek to have numerous paragraphs (identified in the Notice) stricken to the extent they ‘seek relief for any period of time prior to October 1, 2024.’ None of the paragraphs cited, however, make explicit allegations seeking relief for a period prior to October 1, 2024. As observed by Plaintiff, the complaint does not plead a separate “PAGA period,” nor does it allege that the representative claim begins on a particular date.

Instead, the complaint alleges that Plaintiff worked for Defendant from approximately August 2023 to January 2025 and seeks relief for “violations committed against him during his time of employment.” (¶ 16.) While that timeframe does include dates prior to September 1, 2024, there are no specific allegations that can be stricken which directly relate to those dates.

For example, Plaintiff alleges: “At all material times set forth herein, Defendants failed to pay overtime wages to Plaintiff and the other aggrieved employees.” (¶ 40.) Defendants appear to argue that the ‘all material times’ cannot relate to any dates prior to October 1, 2024 – since those are covered by the *Gibson* PAGA Settlement. Even if the Court assumes that to be true (which at this point in the proceedings it cannot), there is nothing in that paragraph that can be stricken to specifically restrict the dates of the claims occurring on or after October 1, 2024.

Instead, it appears that Defendants would like to have the complaint rewritten to limit the timeframe for the PAGA claims to explicitly state they are limited to October 1, 2024, and thereafter. Code of Civil Procedure section 436 only allows a court to “strike” text from a pleading. It does not allow a court to rewrite the allegations of the Complaint.

If Defendants turn out to be correct, and the *Gibson* PAGA Settlement does apply to the claim in this matter, then the ‘material times’ allegations will be read to be limited to dates outside the scope of the *Gibson* PAGA Settlement. There is no need to have specific dates within the complaint to accomplish this goal.

Kelly Bozarth Allegations

The Court sustained Defendant Bozarth’s demurrer to the Complaint. As such, her motion to strike is denied as moot.

Conclusion

Defendants’ motion to strike is **denied**.

21. 9:00 AM CASE NUMBER: MSC21-00624
CASE NAME: COLEMAN VS YDESIGN GROUP, LLC
HEARING IN RE: COMPLIANCE
FILED BY:
TENTATIVE RULING:

This matter has been continued to September 17, 2026 at the parties’ request.

22. 9:00 AM CASE NUMBER: N25-0895
CASE NAME:
***HEARING ON MOTION IN RE: DISQUALIFY DEFENSE FIRM**
FILED BY: ADCOCK, JAMES
TENTATIVE RULING:

The Court received a communication from Counsel for the moving party that the Notice of Motion with the hearing date had not been served and requesting a continuance. The Court did not receive any further documentation. Given, however, that it appears that the Motion was not properly served, it has been continued to August 13, 2026 at 9:00 am. Petitioner is ordered to serve notice of this amended hearing date. Opposition is due no later than July 31, 2026 and any Reply is due no later than August 6, 2026.

Discovery Law & Motion

23. 9:01 AM CASE NUMBER: MSC16-01118
CASE NAME: YUE VS. TRIGMAX SOLUTIONS
***HEARING ON MOTION FOR DISCOVERY SANCTIONS AGAINST DEFENDANT TRIGMAX SOLUTIONS, LLC**
FILED BY: YUE, DONGXIAO
TENTATIVE RULING:

This case has been litigated for years, with shifting representations, multiple appeals—including one pending—and a series of troubling accusations in both directions. Before the Court today is Plaintiff Dongxiao Yue's Motion for Sanctions against Defendant Trigmax Solutions. Trigmax filed a late opposition, dated and received by the Court on July 13, which is one court day after it was due.

The Court will not recite all of the years of history and all of the sordid details at issue. What the Court will note, at start, is that counsel for Trigmax has wholly failed to act professionally. Throughout correspondence with Plaintiff Yue, counsel William Pohl makes reference to Yue as delusional: (1) "I suspect your aluminum hat has fallen off"; (2) "your level of conspiracy theory is amazing. For an explanation on foil hats, try Wiki. Weird Al Yankovich has a GREAT song on them called 'Foil.'"; (3) "If you spent half on your psychiatric treatment what you spend on this case, you would be healed." These types of communications, especially from an attorney to an unrepresented party, are entirely outside the bounds of ethical conduct. Counsel Pohl is reminded that even though he has relocated out of state, he is bound by California rules of professional conduct, including, but not limited to Rule 8.4.1.

On the meat of the matter, Yue has a large number of complaints about various defaulted, defunct, and current defendants' actions. The Court will not be addressing the truth of discovery responses. Whether they are false and inaccurate is for trial or at least an evidentiary hearing. The Court addresses the core request for \$60 in sanctions relating to Trigmax's violation of the Court's order to provide supplemental responses without objection. To that, Trigmax had no response. The Court grants this request.

Additionally, Yue seeks discovery relating to any involvement of counsel in misrepresentations relating to ownership of defaulted Defendant Yeyecub. Trigmax's response meanders about but never truly addresses the core concern. Trigmax is correct that administrative rights to a website may very well be different in important ways from ownership for legal purposes. Trigmax may also be correct that Yue is confused about the distinction. But Trigmax's only other response is that the issues of falsified declarations has been previously addressed is not borne out by the exhibits. In 2018, Yue appears to have refused to participate in discovery referee processes and declined to address jurisdictional issues. Trigmax appears to have failed to pay the discovery referee. The referee asked to be relieved. Yue will be permitted discovery related to the narrow issue of the declarations of November 7, 2018, November 13, 2018 and the identity of Wei Yang as known by Counsel Pohl from 2017-2019.

Additionally, Counsel Pohl is advised that any further improper communications may result in sanctions, including a report to the California State Bar.

After ten years, it is time for the parties to finally resolve this dispute. That cannot happen without compliance with the rules and improved behavior.

Law & Motion
Add On

24. 9:00 AM CASE NUMBER: MSC22-00438

CASE NAME: GODFREY VS. DENARD

HEARING ON SUMMARY MOTION

FILED BY:

TENTATIVE RULING:

Defendant Desiree Denard's Motion for Summary Judgment is **granted**. Defendant shall prepare the order and file and serve notice of entry of order.

Background

Plaintiff filed this action on March 8, 2022. The operative First Amended Complaint, filed February 5, 2026, asserts causes of action for violation of Civil Code section 1708.85, invasion of privacy, and intentional infliction of emotional distress, along with a claim for punitive damages.

On January 30, 2018, Plaintiff Lavon Godfrey ("Plaintiff") sent Defendant Desiree Denard ("Defendant") a video of Godfrey masturbating via private Facebook message. (Defendant's Separate Statement of Undisputed Material Facts ("SSF") No. 1.) Plaintiff shared the video with only Denard. (SSF No. 2.)

Defendant contends that, on that same day, she shared the video with three family members, including Toni Denard, Chanee Denard, and Timoya Jones, and with no one else. (SSF Nos. 3-4; Denard Decl. ¶¶ 5-6.) This is disputed. Plaintiff contends Defendant created and used a Facebook group chat as a distribution channel that facilitated broader circulation, that this is corroborated by a third-party witness (Toni Denard), and that Defendant's disclosure was motivated by a rent-money dispute. (SSF Nos. 3-4 and Godfrey's Response.) Plaintiff's response to SSF No. 3 does not dispute that Defendant shared the video with the three named family members; rather, it disputes whether dissemination was limited to that group.

On February 3, 2018, Plaintiff texted Breyahanna Roger stating that she had sent the video to Denard, that she had instructed Defendant to delete it, and that Defendant had shared it with Chanee Denard and another family member. Plaintiff wrote that she intended to "send my niece to jail" and sue. (SSF No. 5.) On February 16, 2018, Oakland comedian Jerry Law was already discussing the video. (SSF No. 6.) On April 14, 2018, Plaintiff publicly reposted a comment attributing the video's spread to Chanee Denard and identifying "Lucky Dollaz" (Jerry Law) as a further distributor. (SSF No. 7.)

Plaintiff requested an apology from Jerry Law after learning the video had been shared, "as part of an

effort to address harm caused by the nonconsensual distribution of intimate material." (SSF No. 17.) On May 30, 2018, Plaintiff applied to register the trademark "Lucky Dollaz" after Jerry Law refused to apologize for posting the video in a chat with approximately 8,000 members. (SSF Nos. 8-9.)

On June 4, 2018, Plaintiff posted an Instagram video publicly describing how she "punished" Jerry Law for sharing the video by applying to trademark "Lucky Dollaz," commenting that the video was "giv[en] to him by my sister that hates me," naming Mario Hodge and Jerry Law as recipients. (SSF No. 10.) On August 23, 2019, Plaintiff posted a YouTube video referencing "revenge porn and cyber bullying" by Mario Hodge and Jerry Law, narrated in cartoon form in her own voice: "My own family did this to me. My niece Desiree Denard and my sister Chane Denard gave them the video of me." (SSF No. 11.) She posted a second video on September 18, 2019, again referencing the dissemination. (SSF No. 12.) On March 14, 2020, Godfrey posted a further video naming both Chane Denard and Desiree Denard by name and hashtag as having given the video to Mario Hodge and Jerry Law. (SSF No. 13.) On or around November 24, 2020, Plaintiff gave a recorded interview describing how she sent the video to Defendant, how Mario Hodge and Jerry Law obtained and further shared it, and her subsequent efforts to "punish" Jerry Law. (SSF No. 14.)

Defendant asserts as a material fact that Plaintiff does not remember the specific date she learned the video was shared with persons other than Denard. (SSF No. 16.) Plaintiff disputes this, contending in her response that her awareness developed gradually due to Defendant's alleged denial that she had shared the video, Plaintiff's documented mental health condition, and confirmation that Plaintiff later received from a third party (Jakita Guster), on or about March 1, 2021, that Defendant had shared the video with her as well. (SSF No. 16 and Godfrey's response.)

Plaintiff contends her claims are timely under several tolling theories including delayed discovery, mental incapacity, fraudulent concealment, and COVID-19 emergency tolling.

I. Legal Standard

A motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).) A defendant moving for summary judgment has the initial burden of showing either that one or more elements of the cause of action cannot be established or that there is a complete defense thereto. (Code Civ. Proc., § 437c, subds. (o), (p)(2); *Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 768 (Saelzler).) If the initial burden is met, the burden shifts to the plaintiff to show the existence of a triable issue of fact with respect to that cause of action or defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Saelzler*, at p. 768.)

II. Preliminary Matters

On April 13, 2026, Plaintiff filed two briefs in opposition to the motion: a thirteen-page "Opposition to Defendant Desiree Denard's Motion for Summary Judgment" (the "Opposition") and a nine-page "Memorandum of Points and Authorities in Opposition to Defendant Desiree Denard's Motion for Summary Judgment" (the "Memorandum"). The proof of service accompanying these filings does not clearly indicate that both briefs were served on Defendant. Defendant did not raise this as an objection in her reply, however, so the Court considers both.

In her response to Defendant's separate statement of material facts, Plaintiff responded to each of Defendant's numbered facts, but did not separately set forth the additional material facts she contends support her tolling theories, with citation to supporting evidence for each, as subdivision (b)(3) requires. Rule of Court 3.1350(f)(3) further requires that "[c]itation to the evidence in support of each material fact must include reference to the exhibit, title, page, and line numbers." (Cal. Rules of Court, rule 3.1350(f)(3).) Plaintiff's incapacity theory in particular appears within argumentative responses to Defendant's Fact No. 16 and within a declaration that cites Exhibits J, K, and L in their entirety, without reference to specific page or line numbers, placing on the Court the burden of reviewing each exhibit in full to locate whatever portions might support plaintiff's theory. While the ordinarily preferred remedy for a defective separate statement is to permit the opposing party an opportunity to cure (*Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co.* (2005) 133 Cal.App.4th 1197, 1211), that remedy is unwarranted here because, as set forth below, Plaintiff's incapacity theory fails on the merits even considering the underlying evidence in full, and a cure of the citation defect alone would not change the outcome.

On June 1, 2026, Plaintiff filed a supplemental brief entitled "Response to Defendant's Reply in Support of Summary Judgment." The Code of Civil Procedure makes no provision for such a filing. Considering the brief and the arguments raised in it would deprive Defendant of a fair opportunity to respond. The Court disregards the brief. (See *City of Arcadia v. State Water Resources Control Bd.* (2010) 191 Cal.App.4th 156, 180, as modified on denial of reh'g [Jan. 20, 2011].)

III. Statutes of Limitation and Accrual

An action for violation of the right of privacy or for intentional infliction of emotional distress must be commenced within two years of accrual. (Code Civ. Proc., § 335.1.) An action under Civil Code section 1708.85 must be commenced within three years of accrual. (Code Civ. Proc., § 338(a).) A claim generally accrues, and the applicable limitations period begins to run, "when the cause of action is complete with all of its elements." (*Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 397.) An exception to this rule is the discovery rule, which "postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action." (*Ibid.*) Discovery occurs when the plaintiff "at least suspects a factual basis, as opposed to a legal theory, for its elements, even if he lacks knowledge thereof — when, simply put, he at least 'suspects . . . that someone has done something wrong' to him." (*Id.* at pp. 397-398.) The plaintiff need not know the specific facts needed to establish the cause of action; it is enough that the plaintiff has notice or information of circumstances that would put a reasonable person on inquiry. (*Id.* at p. 398.) "So long as a suspicion exists, it is clear that the plaintiff must go find the facts; she cannot wait for the facts to find her." (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1111.)

The undisputed evidence shows Plaintiff had actual knowledge sufficient to trigger accrual no later than February 3, 2018. On that date, Plaintiff texted Breyahanna Roger stating that she had sent the video to Denard, that she had instructed Defendant to delete it, that Defendant had shared it with Chanee Denard and another family member, and that she intended to "send my niece to jail" and sue. (SSF No. 5.) This is not a case where Plaintiff's suspicion was vague because, by her own account, she suspected wrongdoing, identified the person responsible, and stated an intent to pursue legal action, all on the same day. Plaintiff publicly identified Chanee Denard and Jerry Law as further distributors

by April 2018 (SSF No. 7), filed a trademark application in response to Jerry Law's refusal to apologize in May 2018 (SSF Nos. 8-9), and posted a series of public videos between June 2018 and March 2020 describing the dissemination in increasing detail, including one in which she named both Defendant and Chanee Denard by name and hashtag as having given the video to Mario Hodge and Jerry Law. (SSF Nos. 10-13.)

Based on the evidence presented, Plaintiff's claims accrued no later than February 3, 2018. Thus, the two-year limitations period for her privacy and IIED causes of action expired February 3, 2020 and the three-year period for her Civil Code section 1708.85 cause of action expired February 3, 2021. As Plaintiff did not file this action until March 8, 2022, her claims are time barred unless a tolling doctrine applies.

IV. Tolling Theories

A. Fraudulent Concealment

Fraudulent concealment tolls the statute of limitations only while the plaintiff's claim remains undiscovered because of the defendant's concealment, or until reasonable diligence would have uncovered it. (*Bernson v. Browning-Ferris Industries* (1994) 7 Cal.4th 926, 931.) Plaintiff asserts that Denard's denials, when asked directly whether she had shared the video, concealed Denard's role and prevented Plaintiff from discovering her cause of action sooner.

Plaintiff does not dispute that by February 3, 2018, she knew Defendant had shared the video, identified Denard by name as responsible, and stated her intent to pursue legal action. (SSF No. 5.) Her opposition instead argues that Defendant's denials that she had shared the video "prevented Plaintiff from reliably confirming the source" of the dissemination until March 1, 2021, when Jakita Guster told her Defendant had sent the video to her as well. (Opposition, p. 2, lines 13-17..) This argument does not hold together. Plaintiff's own February 3, 2018 text already states, as fact, that Defendant shared the video. It is also undisputed that Plaintiff sent the video to Defendant only (SSF No. 2), so Defendant was necessarily the source of any further dissemination. At most, whatever confirmation Plaintiff says she got from Guster in 2021 goes to how certain she was, not to when she discovered her claim.

Because Plaintiff knew Denard's role before any of the denials she now points to, and because the later "confirmation" she describes goes only to certainty, fraudulent concealment does not toll the statute of limitations here.

B. Mental Incapacity Under Code of Civil Procedure § 352

Plaintiff argues her claims were tolled under California Code of Civil Procedure section 352 due to a mental health related disability.

It is a "firmly established rule that 'a litigant who relies on facts in order to avoid the bar of the statute of limitations bears the burden of proving such facts . . . ' [Citation.]" (*Sanchez v. South Hoover Hospital* (1976) 18 Cal.3d 93, 106; see also *Trantafello v. Med. Ctr. of Tarzana* (1986) 182 Cal. App. 3d 315, 317.) Since the undisputed material facts establish that the statutes of limitation bar Plaintiff's

claims, Plaintiff has the burden of raising a triable issue of fact as to whether the statutes of limitations are tolled by reason of mental incapacity under Code of Civil Procedure section 352.

Section 352(a) states that if a person entitled to bring an action "is, at the time the cause of action accrued . . . lacking the legal capacity to make decisions, the time of the disability is not part of the time limited for the commencement of the action." (Cal. Civ. Proc. Code § 352(a).) To invoke tolling under Section 352(a), a plaintiff must show that he was "incapable of caring for [their] property or transacting business or understanding the nature or effects of [their] acts." *Alcott Rehab. Hosp. v. Superior Ct.* (2001) 93 Cal. App. 4th 94, 101.) The key inquiry is whether the person bringing the action was "sufficiently aware of the nature or effects of [their] acts to be able to comprehend such business transactions as the hiring of an attorney and the instigation of a legal action." (*Hsu v. Mt. Zion Hosp.* (1968) 259 Cal. App. 2d 562, 575.) "Moreover, incapacity must exist at the time the claims accrue, and tolling lasts only until the plaintiff regains capacity." (*Id.* at 573.)

Plaintiff relies on five principal sources of evidence to support the application of tolling here: (1) a February 5, 2026 declaration of Mark Gross, an Associate Clinical Social Worker at Eden Adult Community Center (Declaration of Lavon Godfrey in Opposition to Motion for Summary Judgment ("Godfrey Decl."), Exh. K); (2) a November 5, 2024 letter from Gross describing Godfrey's treatment history (Godfrey Decl., Exh. K); (3) two letters from Dr. Giridhar Reddy of Eden Adult Community Support Center (Godfrey Decl., Exh. J); (4) a discharge summary from a November 2020 psychiatric hospitalization at Sutter Health (Godfrey Decl., Exh. L); and (5) statements in her own declaration.

In his declaration prepared for this litigation, Gross states he has provided psychotherapy services to Plaintiff "since approximately 2018," and that he has treated her on a regular basis since, including during periods of significant psychiatric instability. (Gross Decl. ¶ 2.) He states that at the outset of treatment, Plaintiff "presented with a significant psychiatric history, including prior severe trauma, ongoing mental health treatment, and residual effects of earlier psychological injury." (*Id.* ¶ 4.) He states that throughout treatment, Plaintiff "consistently reported and described the nonconsensual dissemination of an intimate video involving her, as well as the resulting harm, humiliation, fear, and ongoing emotional distress." (*Id.* ¶ 5.) He states that "from two years following the nonconsensual dissemination of the intimate video," he observed a "marked and persistent deterioration" in her mental health. (*Id.* ¶ 6.) He describes her symptoms (*id.* ¶ 7), states she experienced multiple psychiatric crises requiring hospitalization (*id.* ¶ 8), and states that the trauma was "a substantial contributing factor" to her increased treatment needs over time (*id.* ¶ 12). He states that, "based on [his] direct clinical observations from 2018 forward," Plaintiff "was not functioning at a level that would reasonably allow her to effectively initiate, manage, or navigate complex tasks such as legal proceedings, self-advocacy, or decision-making related to her personal or legal interests." (*Id.* ¶ 11.) He states that the harm he observed "has been enduring rather than transient" and that Plaintiff "continues to experience" symptoms as of the date of his declaration. (*Id.* ¶ 13.)

In a letter dated November 5, 2024 Gross letter states that Plaintiff has attended treatment at Eden since May 2018, and describes her diagnoses, a 2016 suicide attempt, and periods of psychiatric hospitalization. It states that during these periods of decompensation, her symptoms "sabotaged her ability *at the time* to deal with court procedures."

Two letters from Dr. Giridhar Reddy of Eden Adult Community Support Center address Plaintiff's

condition. The August 21, 2025 letter states that Plaintiff "has a severe psychiatric illness" and has received medication management and counseling at Eden "since 2018," and that she has reported an increase in the intensity of her depression, panic attacks, and mood swings "because of revenge porn that was inflicted on her." The letter states that "at the time of this incident, she reports she was in severe mental distress and not competent to take any action to protect herself." The September 30, 2024 letter states that Plaintiff has been in treatment at Eden "since 2018," that her "medical condition had its onset around 2016," and that, due to her condition and her medications, she "experiences memory deficits and has difficulty recollecting events from her past."

The Sutter Health discharge record documents a psychiatric hospitalization from November 4 to November 6, 2020. The contemporaneous mental status examination found Plaintiff oriented and alert, with judgment assessed as fair and a "clear and logical thought process," improving to fair insight by discharge.

Plaintiff's own declaration states only that she has "experienced significant mental health challenges, including conditions that affect [her] memory and ability to process traumatic events" (Godfrey Decl. ¶ 15), that "these conditions are documented in [her] medical and psychiatric records" (*id.* ¶ 16), and that "as a result," she "did not immediately understand or confirm the full extent of the video's distribution" (*id.* ¶ 17).

This evidence is not sufficient to raise a triable issue of fact that Plaintiff lacked the legal capacity to make decisions at the time her claims accrued, or at any ascertainable point after.

As discussed above, Plaintiff's claims accrued on February 3, 2018. Gross's own November 5, 2024 letter states that her treatment at Eden did not begin until May 2018, three months later. Neither Gross nor Dr. Reddy treated her when her claims accrued, so neither has personal knowledge of her condition on that date. Dr. Reddy's September 30, 2024 letter places the onset of her condition "around 2016," which predates her Eden treatment by two years and therefore rests on history she reported rather than on anything he observed. The Sutter Health hospitalization occurred in November 2020, nearly three years after accrual.

Paragraph 11 of the Gross declaration is the only statement in this record offered as Gross's own opinion on legal capacity, and it does not meet the standard. Being unable to "effectively initiate, manage, or navigate complex tasks such as legal proceedings" is not the same thing as being unable to understand the nature or effects of one's acts, or to comprehend hiring an attorney and/or instigating a lawsuit. Liberal construction requires resolving genuine ambiguity in Plaintiff's favor, but it does not require the Court to read "not effectively able to" as "unable to." Nor does paragraph 11 supply any facts, tied to any date, explaining what this impairment looked like in practice. Moreover, because Gross's treatment began in May 2018, his "direct clinical observations from 2018 forward" necessarily begin three months after accrual and cannot supply evidence of Plaintiff's capacity on February 3, 2018. Paragraph 13 states that the harm Gross observed "has been enduring rather than transient" and Plaintiff "continues to experience" symptoms as of the date of his declaration. Tolling under section 352 lasts only until the plaintiff regains capacity, which means the statute needs some point at which the disability lifted. A condition Gross describes as still unresolved years after Plaintiff filed this action in March 2022 does not supply that point, and does not explain how she managed to file suit at

that time notwithstanding the condition he describes as ongoing.

The Gross letter's statement that Plaintiff's symptoms "sabotaged her ability at the time to deal with court procedures" is tied specifically to "periods of decompensation" requiring psychiatric hospitalization, not to a continuous or ongoing inability to understand or act on her rights. That confines whatever impairment this statement describes to discrete episodes of hospitalization but the letter does not say how many such episodes occurred, when any of them occurred, or how long any of them lasted.

The August 2025 Reddy letter says that Plaintiff was "in severe mental distress and not competent to take any action to protect herself." But this is based on Plaintiff's own report to Reddy, not his independent finding, and it is not dated. The letter ties the statement to "revenge porn that was inflicted on her" generally.

Plaintiff's declaration states that she "experienced significant mental health challenges, including conditions that affect [her] memory and ability to process traumatic events" (Godfrey Decl. ¶ 15), and that "as a result," she "did not immediately understand or confirm the full extent of the video's distribution." (*Id.* ¶ 17.) Neither statement addresses her capacity to understand her rights or to act on them.

The Court finds that Plaintiff's evidence on mental incapacity, even taken as true, doesn't meet the standard for tolling under Code of Civil Procedure section 352(a). In fact, much of the evidence points the other way. For example, Gross stated that Plaintiff "consistently reported and described" the dissemination and its harm in sessions with him (¶ 5), meaning she understood and could put into words the wrong done to her. The Sutter Health record found Plaintiff oriented and alert, with fair judgment and a "clear and logical thought process," improving further by discharge two days later. Plaintiff's own conduct during this period accords with this. The day the video was shared, she texted a specific accusation against Denard and said she intended to pursue legal action. (SSF No. 5.) She later asked Jerry Law for an apology for his role in sharing the video as part of an effort to address the harm it had caused. (SSF No. 17.) When he refused, Plaintiff didn't just post about it again, she filed a federal trademark application to claim Law's stage name, using the trademark registration process against him. (SSF Nos. 8-9.)

While the Court recognizes that a plaintiff's evidentiary submission opposing summary judgment should be liberally construed (*Saelzler, supra*, 25 Cal.4th at 768-769), the evidence Plaintiff submits in opposition to the motion is not sufficient to raise a triable issue of fact as to incapacity during the relevant period.

C. COVID-19 Emergency Tolling

Emergency Rule 9 of the California Rules of Court tolled statutes of limitations for civil claims of 180 days or less that would otherwise have expired between April 6, 2020, and October 1, 2020, providing a tolling credit of 178 days. (Cal. Rules of Court, Appen. I, Emergency rule 9(a).) That window does not cover either limitations period here. Plaintiff's two-year claims expired February 3, 2020, before the emergency tolling period began. Her three-year claim expired February 3, 2021, after it ended.

Thus, Emergency Rule 9 does not apply here. Even if it did, a 178-day credit would not make Plaintiff's claims timely.

V. Plaintiff's Republication Theory

Plaintiff's opposition also argues that Defendant is liable for the further dissemination of the video by third parties, including Chanee Denard, Jerry Law, and Mario Hodge, as a foreseeable consequence of Denard's original disclosure. It is not clear whether Plaintiff intends this argument to bear on the timeliness of her claims, and Defendant's reply does not squarely address the issue. To the extent it is relevant to timeliness, the Court addresses it briefly.

Plaintiff cites *Mitchell v. Gonzales* (1991) 54 Cal.3d 1041 for the proposition that "a defendant whose conduct is a substantial factor in setting harmful events in motion may be liable for foreseeable downstream harm." (Opposition, p. 10, lines 24-27.) *Mitchell* was a wrongful death case concerning jury instructions on causation in a negligence action. It does not address liability for a third party's republication of material. Assuming Plaintiff meant *Mitchell v. Superior Court* (1984) 37 Cal.3d 268, that case does not assist her either. A party may hold the original speaker liable for a third party's republication of a statement, even where the speaker did not republish it herself, "as long as republication should have been reasonably foreseeable by the originator." (*Schneider v. United Airlines, Inc.* (1989) 208 Cal.App.3d 71, 77; *Mitchell v. Superior Court, supra*, 37 Cal.3d at p. 281.) The Court assumes that this rule, developed in the defamation context, would extend to Plaintiff's causes of action here and would apply to the republication Plaintiff describes.

Plaintiff has not raised a triable issue as to foreseeability. Her response to Denard's Separate Statement Nos. 3-4 asserts that Chanee Denard further distributed the video to the Oakland comedy community, but offers no evidence that Denard could have foreseen this when she disclosed the video to three family members on January 30, 2018. (Code Civ. Proc., § 437c, subd. (p)(2).)

Even if foreseeability were shown, the undisputed facts establish that Plaintiff knew of this republication more than three years before she filed suit. Plaintiff knew Jerry Law was discussing the video no later than February 16, 2018. (SSF No. 6.) By May 30, 2018, she knew he had posted it in a chat with approximately 8,000 members, and she applied to register a trademark in his stage name after he refused to apologize for it. (SSF Nos. 8-9.) The record identifies no act of republication after that date. Measured from either date, both the two-year and three-year limitations periods expired before Plaintiff filed this action on March 8, 2022, and none of Plaintiff's tolling theories raises a triable issue as to any claim arising from republication.

VI. Evidentiary Objections

Plaintiff filed objections to evidence on April 13, 2026. Defendant did not file any.

Evidentiary objections must be accompanied by a proposed order that complies with the requirements set forth in California Rules of Court, rule 3.1354(c). The rule requires an objecting party to file two separate documents, the objections themselves and a separate proposed order, both in one of the approved formats set forth in the rule. (Cal. Rules of Court, rule 3.1354(b), (c).) Plaintiff's objections to the Declaration of Desiree Denard fail to comply with the rule, as Plaintiff did not submit

a proposed order as required. Accordingly, the Court is not obligated to rule on the objections based on this defect alone. (*Vineyard Spring Estates v. Superior Court* (2004) 120 Cal.App.4th 633, 642 [trial courts have a duty to rule only on evidentiary objections presented in proper format].)

In any event, the Court need rule only on those objections to evidence that are material to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q); *Serri v. Santa Clara Univ.* (2014) 226 Cal.App.4th 830, 857.) None of Plaintiff's objections are material here. Accordingly, the Court declines to rule on them.

VII. Conclusion

Defendant has met her burden of showing that Plaintiff's claims are barred by the applicable statutes of limitation, and Plaintiff has not raised a triable issue of fact as to any theory of tolling. Summary judgment is **granted**.